

Testimony of RCFL Forensic Examiner, *California v. Westerfield*, June 2002 

JIM WATKINS.

JAMES M. WATKINS, JR.,

CALLED AS A WITNESS BY THE PLAINTIFF, HAVING BEEN DULY SWORN,  
TESTIFIED AS FOLLOWS:

THE CLERK: SIR, PLEASE STATE YOUR NAME AND SPELL IT FOR THE RECORD.

THE WITNESS: JAMES M. WATKINS, JR. W-A-T-K-I-N-S.

DIRECT EXAMINATION

BY MR. CLARKE:

**Q:** GOOD AFTERNOON, MR. WATKINS.

**A:** GOOD AFTERNOON.

**Q:** WHO ARE YOU EMPLOYED BY?

**A:** I'M EMPLOYED BY THE SAN DIEGO POLICE DEPARTMENT.

**Q:** IN WHAT ROLE?

**A:** I'M A COMPUTER FORENSIC EXAMINER, AND I'M CURRENTLY ASSIGNED TO  
THE REGIONAL COMPUTER FORENSICS LAB.

**Q:** LET'S START WITH A COMPUTER FORENSICS EXAMINER. WHAT IS THAT?

**A:** YOU HAVE TO EXCUSE ME. I'M GETTING OVER A COLD RIGHT NOW.

A COMPUTER FORENSIC EXAMINER OR AS A COMPUTER FORENSIC EXAMINER,  
MY JOB IS TO EXAMINE COMPUTERS FOR ANY SORT OF DIGITAL EVIDENCE, SUCH  
AS COMPUTER EVIDENCE, FLOPPY DISK, HARD DRIVES, AND EXTRACT EVIDENCE  
OFF OF THEM.

**Q:** ALL RIGHT.

YOU ALSO USED THE TERM I THINK REGIONAL COMPUTER FORENSICS LABORATORY.

**A:** YES.

**Q:** WHAT IS THAT?

**A:** THE REGIONAL COMPUTER FORENSICS LABORATORY OR

R. C. F. L. IS A COOPERATIVE EFFORT OF ALL -- ABOUT THIRTY-TWO LAW ENFORCEMENT AGENCIES HERE IN SOUTHERN CALIFORNIA. WE HAVE RESPONSIBILITIES FOR THE INVESTIGATION OR THE -- I'M SORRY -- THE ANALYSIS OF COMPUTER EVIDENCE IN BOTH SAN DIEGO AND IMPERIAL COUNTIES BOTH FOR THE STATE AND FOR THE FEDERAL AGENCIES.

**Q:** HOW LONG HAS THIS LABORATORY BEEN IN EXISTENCE?

**A:** APPROXIMATELY THREE YEARS NOW.

**Q:** WAS THIS THE FIRST SUCH LABORATORY IN THE UNITED STATES?

**A:** YES, IT WAS.

**Q:** COULD YOU DESCRIBE -- WELL, LET ME ASK A DIFFERENT WAY. WHAT ARE YOUR DUTIES AS A COMPUTER FORENSICS EXAMINER AS FAR AS THE R. C. F. L. IS CONCERNED AND YOUR WORK IN SAN DIEGO AND IMPERIAL COUNTIES?

**A:** WELL, MY DUTIES ARE TO -- THE ONE TO GO OUT TO THE FIELD AND SEIZE COMPUTERS THAT HAVE BEEN USED IN CRIMES OR THAT ARE EVIDENCE IN CRIMES. ALSO TO GO OUT AND DO WHAT WE CALL IMAGING. THERE ARE CERTAIN SITUATIONS WHERE WE CAN'T PHYSICALLY TAKE THE COMPUTER, WHERE THE COURT WON'T ALLOW IT OR IT'S JUST IMPRACTICAL. WE CAN GO OUT INTO THE FIELD AND MAKE COPIES OF THE HARD DRIVES THERE ON THE SCENE AND TAKE THOSE BACK TO THE LABORATORY WITH US. THE OTHER PART IS ONCE BACK AT THE LABORATORY IS THE ACTUAL ANALYSIS OF THAT EVIDENCE.

**Q:** ALL RIGHT.

HOW LONG HAVE YOU BEEN WITH THE R. C. F. L.?

**A:** SINCE ACTUALLY BEFORE ITS INCEPTION. ABOUT THREE AND A HALF YEARS.

**Q:** NOW, YOU HAVE USED THE TERM HARD DRIVE. PERHAPS WE CAN DEFINE SOME OF THESE TERMS AS YOU USE THEM. WHAT IS THAT?

**A:** A HARD DRIVE IS A -- IT'S A LITTLE METAL CASE THAT'S ABOUT THREE AND A HALF INCHES BY ABOUT FOUR INCHES. IT'S INSIDE THE COMPUTER, AND IT'S ACTUALLY THE MEMORY WHERE ALL OF THE INFORMATION IS STORED ON THE COMPUTER.

**Q:** SO IF I TYPE A FILE UP ON A COMPUTER AND I DECIDE I WANT TO SAVE THIS SO I CAN GO BACK TO IT ANOTHER DAY, IS THAT THE LOCATION THAT TYPICALLY I WOULD SAVE SUCH A FILE?

**A:** THAT IS ONE OF THE LOCATIONS, YES, SIR.

**Q:** COULD YOU DESCRIBE FOR THE JURY, IF YOU WOULD, THE EDUCATION, TRAINING, AND EXPERIENCE THAT YOU HAVE THAT HAS LED TO YOUR POSITION AS A COMPUTER FORENSICS EXAMINER.

**A:** YES. I'VE BEEN -- I WAS ASSIGNED TO THE R. C. F. L. THE R. C. F. L. IS ALL OF OUR EXAMINERS INCLUDING MYSELF ARE CERTIFIED BY THE F. B. I. LABORATORY IN WASHINGTON, D. C. I RECEIVED APPROXIMATELY EIGHT HUNDRED HOURS' WORTH OF TRAINING JUST IN COMPUTER FORENSICS. THE TRAINING I'VE RECEIVED HAS BEEN FROM THE FEDERAL BUREAU OF INVESTIGATION, THE COMPUTER TRAINING UNIT IN THE F. B. I. ACADEMY AT QUANTICO, VIRGINIA. I'VE RECEIVED TRAINING FROM THE COMPUTER ANALYSIS AND RESPONSE TEAM OUT OF QUANTICO. I RECEIVED TRAINING FROM THE NATIONAL WHITE COLLAR CRIME CENTER, THE SEARCH GROUP UP IN SACRAMENTO, THE INTERNATIONAL ASSOCIATION OF COMPUTER INVESTIGATIVE SPECIALISTS. I'VE ALSO RECEIVED SPECIFIC TRAINING IN DIFFERENT SOFTWARE PROGRAMS BY GUIDANCE SOFTWARE, ACCESS DATA, AS WELL AS THE PROGRAM I LOOK.

AGAIN I'M CERTIFIED BY THE F. B. I. I'M ALSO CERTIFIED BY THE INTERNATIONAL ASSOCIATION OF COMPUTER INVESTIGATIVE SPECIALISTS AS A COMPUTER FORENSIC CERTIFIED EXAMINER OR C. F. C. E.

**Q:** I WOULD NOW LIKE TO DIRECT YOUR ATTENTION TO EARLY FEBRUARY OF THIS YEAR, SPECIFICALLY FEBRUARY 4TH, AND ASK IF YOU WERE REQUESTED TO TAKE PART IN THE INVESTIGATION OF THE DISAPPEARANCE OF DANIELLE VAN DAM.

**A:** YES, I WAS.

**Q:** IN PARTICULAR WERE YOU ASKED TO ASSIST IN THE SEARCH OF A RESIDENCE?

**A:** YES.

**Q:** WHAT RESIDENCE WAS THAT?

**A:** THE RESIDENCE LOCATED AT 11995 ON MOUNTAIN PASS IN SAN DIEGO.

**Q:** WAS THAT IDENTIFIED -- I'M SORRY.

**A:** IN SAN DIEGO.

**Q:** WAS THAT ADDRESS IDENTIFIED TO YOU AS THE RESIDENCE OF ANY PARTICULAR INDIVIDUAL?

**A:** IT WAS.

**Q:** WHO WAS THAT?

**A:** MR. DAVID WESTERFIELD.

**Q:** WHAT WAS YOUR ROLE TO BE IN THAT SEARCH ON THAT PARTICULAR DATE?

**A:** I WAS REQUESTED TO GO TO THE SCENE AND MAKE COPIES OF THE HARD DRIVES OF THE COMPUTERS THERE.

**Q:** YOU'VE DEFINED WHAT A HARD DRIVE IS. HOW DO YOU MAKE A COPY OF A HARD DRIVE?

**A:** WE HAVE PORTABLE COMPUTERS THAT WE TAKE WITH US. WE'LL SET THOSE UP AT THE SCENE. WE WILL REMOVE THE HARD DRIVES FROM THE SUBJECT COMPUTERS, HOOK THOSE UP TO OUR COMPUTER, AND MAKE WHAT'S CALLED A PHYSICAL IMAGE, WHICH IS A -- JUST AN IDENTICAL COPY OF ALL THE DATA OFF THE SUBJECT COMPUTER ONTO OUR COMPUTER.

**Q:** WHEN YOU SAY YOU BRING EQUIPMENT WITH YOU, DO YOU BRING YOUR OWN PERSONAL COMPUTERS? WHAT DO YOU BRING?

**A:** WE BRING -- THEY ARE COMPUTERS THAT WE HAVE BUILT AT THE R. C. F. L. WE CALL THEM FIELD IMAGING KITS. THEY LOOK LIKE AN OVERGROWN FOR WANT OF A BETTER TERM LUNCH BOX. IT'S TOTALLY SELF-CONTAINED, KEYBOARD,

MONITOR, BUT IT'S A FULLY-POWERED COMPUTER, NOT JUST LIKE A LAPTOP. WITH THAT DEVICE WE CAN HOOK IT UP TO ANY HARD DRIVE AND GO AHEAD AND MAKE OUR COPY.

**Q:** YOU ARRIVED AT THE RESIDENCE ON FEBRUARY 4TH.

**A:** YES, SIR.

**Q:** DID YOU ENTER THE RESIDENCE?

**A:** YES.

**Q:** WHAT DID YOU DO ONCE THAT HAPPENED?

**A:** I WAS DIRECTED TO THE -- WELL, WHEN WE WENT IN, I TALKED TO SERGEANT HOLMES WHO DIRECTED US TO THE UPSTAIRS OFFICE.

**Q:** WHAT DID YOU DO?

**A:** TOOK A -- WELL, EXAMINED THE OFFICE, SAW THAT THERE WERE TWO COMPUTERS INSIDE THE OFFICE AREA THERE. WE SET UP A TABLE AND SET UP A COUPLE OF COMPUTERS AND THEN CONDUCTED THE IMAGING PROCESS.

**Q:** DO YOU RECALL WHAT DATE IT WAS WHEN YOU ACTUALLY ARRIVED AT THE RESIDENCE?

**A:** IT WAS THE MORNING OF THE 5TH.

**Q:** ALL RIGHT.

WAS THIS -- WAS IT DARK OUT?

**A:** YES, IT WAS.

**Q:** SO THIS WAS AFTER MIDNIGHT ON THE 4TH?

**A:** YES.

**Q:** I WOULD LIKE TO SHOW YOU A BOARD OF PHOTOGRAPHS THAT'S BEEN PREVIOUSLY MARKED EXHIBIT 102. AND IF YOU WOULD, MR. WATKINS, TAKE A LOOK AT THOSE PHOTOGRAPHS LABELED A THROUGH J. DO YOU SEE THOSE PHOTOGRAPHS?

**A:** YES, I DO.

**Q:** OKAY.

DO ANY OF THOSE PHOTOGRAPHS SHOW SOMETHING THAT YOU ARE FAMILIAR WITH FROM YOUR ENTRY OF THE RESIDENCE ON FEBRUARY 5TH?

**A:** THE FIRST THING IT POINTS OUT ARE THE COMPUTERS THAT ARE VISIBLE IN PHOTOGRAPH A, G, AND H.

**Q:** DO YOU RECOGNIZE THEM?

**A:** YES, I DO.

**Q:** WHAT ARE THEY?

**A:** THOSE ARE ACTUALLY IN -- YOU CAN SEE IN PHOTOGRAPH A, YOU CAN SEE COMPUTER MONITORS AND JUST BELOW THE DESK THE MONITORS ARE SITTING ON THERE ARE SOME COMPUTERS OR THE CENTRAL PROCESS UNITS OR C.P. UNITS OF THE COMPUTERS.

**Q:** OKAY. WE WILL GET A COUPLE MORE TERMS THERE.

WHAT I AM GOING TO ASK YOU TO DO IS -- IS THERE A POINTER THERE YOU CAN REACH ON THE WITNESS STAND?

**A:** YES.

**Q:** ALL RIGHT.

IF YOU COULD START WITH PHOTOGRAPH A AND IF YOU WOULD DESCRIBE WHAT EACH OF THESE PHOTOGRAPHS SHOW.

**A:** WHAT PHOTOGRAPH A SHOWS IS A DESK WITH TWO COMPUTER MONITORS SITTING ON TOP, AND THEN UNDERNEATH YOU CAN SEE THE BACK OF A COMPUTER WHICH AGAIN IT'S CALLED A C.P.U. OR CENTRAL PROCESSING UNIT. THAT'S WHAT ACTUALLY HOLDS ALL OF THE COMPONENTS OF THE COMPUTER WHICH DOES THE COMPUTING AND HOLDS THE HARD DRIVE WHICH HAS THE MEMORY AND THAT SORT OF THING.

**Q:** CAN I STOP YOU FOR A MOMENT.

**A:** CERTAINLY.

**Q:** IS THAT WHAT SOMEBODY WOULD CALL THE BOX?

**A:** THAT'S WHAT SOMEBODY CALLS THE BOX, YES, SIR.

**Q:** YOU USED THE TERM MONITOR. WHAT IS A MONITOR?

**A:** IT'S A T.V. SCREEN THAT ALLOWS THE USER TO LOOK AND SEE WHAT THE COMPUTER IS DOING.

**Q:** OKAY. GO AHEAD.

**A:** COMING DOWN TO G, AGAIN THERE ARE TWO MONITORS AND ON H ALSO ONE MONITOR AND A TELEVISION SCREEN.

**Q:** ALL RIGHT. LET'S GO BACK TO PHOTOGRAPH G IF WE COULD.

I THINK YOU DESCRIBED TWO MONITORS THAT ARE VISIBLE IN THAT PHOTOGRAPH.

**A:** YES, SIR.

**Q:** AND THEN I THINK YOU SAID THAT WHAT WAS IN BETWEEN IS A T.V. SCREEN.

**A:** APPEARS TO BE A SMALL TELEVISION, V.C.R.

**Q:** ALL RIGHT. VERY GOOD.

NOW, I THINK YOU WERE STILL DESCRIBING THE PHOTOS AND I'M NOT SURE WE GOT -- I THINK YOU TALKED ABOUT PHOTOGRAPHS A, G, AND H. IS THAT CORRECT?

**A:** YES, SIR, THAT IS CORRECT.

**Q:** OKAY.

CAN YOU TELL US ABOUT THE REMAINING PHOTOGRAPHS.

**A:** THE OTHER PHOTOGRAPHS ARE -- PHOTOGRAPH B, THERE IS A PRINTER AND A COPY MACHINE. PHOTOGRAPH C SHOWS A BOOKCASE. THE TOP PART OF A MONITOR. D SHOWS ANOTHER BOOKCASE OR, I'M SORRY, SHOWS THE SAME BOOKCASE. E THE BOOKCASE. F THE BOOKCASE. I SHOWS AN ENVELOPE AND J SHOWS SOME C.D. ROMS AND SOME ZIP DISKS.

**Q:** ALL RIGHT. WE WILL RETURN TO THOSE ITEMS AND I'LL HAVE YOU TELL US

WHAT THEY ARE.

DID THERE COME A TIME YOU ARRIVED IN THE OFFICE?

A: YES.

Q: THAT IS, THE OFFICE PORTION OF THE RESIDENCE OF MR. WESTERFIELD AS SHOWN IN EXHIBIT 102.

A: YES, SIR.

Q: WERE YOU WITH ANY OTHER COMPUTER EXAMINERS?

A: YES, I WAS.

Q: WHO WAS THAT?

A: I WAS WITH LEE YOUNGFLESH FROM THE FEDERAL BUREAU OF INVESTIGATION.

Q: DO YOU KNOW HOW THAT LAST NAME IS SPELLED?

A: Y-O-U-N-G-F-L-E-S-H.

Q: DID THERE COME A TIME WHEN THE TWO OF YOU ENTERED THE ACTUAL OFFICE AREA?

A: YES.

Q: WHAT DID YOU DO?

A: WE SET A TABLE, A TABLE THAT WE BROUGHT WITH US, IN FRONT OF THE BOOKCASE POINTING TO PICTURE D. WE PUT THE TABLE DIRECTLY IN FRONT OF IT WHERE WE COULD, WITH JUST ENOUGH ROOM TO GET BETWEEN THE TABLE WHERE THE COMPUTERS ARE ON AND THE TABLE WE BROUGHT.

WE THEN SET UP THE LUNCH BOXES, WHICH IS A SLANG FOR THE FIELD IMAGING KITS. WE SET THOSE COMPUTERS UP ON THE TABLE, AND THEN WE PROCEEDED TO DO OUR IMAGING.

Q: OKAY.

THE IMAGING PROCESS AGAIN, WHAT IS THAT?

**A:** THE IMAGING PROCESS IS WE WENT AND TOOK -- I WENT AND TOOK THE HARD DRIVE. WELL, THERE ARE TWO COMPUTER -- I'M SORRY -- TO CENTRAL PROCESSING UNITS THAT WERE UNDERNEATH THE DESK AS SHOWN IN A. WE REMOVED THE COMPUTER, THE CENTRAL PROCESSING UNITS, AND FROM THOSE WE TOOK THE HARD DRIVES OUT, ATTACHED THE HARD DRIVES UP TO OUR COMPUTERS, AND MADE THE IMAGES.

**Q:** DOES THAT TAKE A PERIOD OF TIME?

**A:** IT TOOK ROUGHLY SEVERAL HOURS.

**Q:** WHY DOES IT TAKE SO LONG?

**A:** THE SIZE OF THE HARD DRIVES. IT JUST TAKES THAT LONG FOR THE COMPUTERS TO MAKE THE COPIES BECAUSE THEY TAKE EVERYTHING ON THE COMPUTER, EVEN AREAS THAT DON'T APPEAR TO HAVE DATA, MAYBE OLD, DELETED DATA, THAT SORT OF THING. IT DOES A BIT-FOR-BIT OR PHYSICAL IMAGE OF ALL THE DATA AREAS.

**Q:** NOW, I THINK YOU POINTED TO AT ONE POINT PHOTOGRAPH J ON EXHIBIT 102 AND SAID THAT THAT PHOTOGRAPH SHOWED AMONGST OTHER THINGS COMPACT DISKS.

**A:** YES.

**Q:** WHAT'S A COMPACT DISK?

**A:** COMPACT DISK IS A SMALL, PLASTIC DISK APPROXIMATELY FOUR AND A HALF INCHES IN DIAMETER. IT'S ROUND. IT'S VERY THIN. AND IT FITS INTO A READER OR A -- I'M SORRY -- A DRIVE THAT THESE COMPUTERS HAVE INSTALLED IN THEM. AND THEY CONTAIN DATA.

**Q:** ARE COMPACT DISKS ALSO KNOWN AS C.D.'S FOR SHORT?

**A:** THEY'RE KNOWN AS C.D.'S OR IN THESE CASES C.D.R.'S OR C. D. WRITE. WHICH MEANS YOU HAVE THE ABILITY TO WRITE ON THEM.

**Q:** LET'S GO BACK TO C.D., AND THEN WE WILL TALK ABOUT THAT A LITTLE BIT.

FIRST OF ALL, THERE ARE C.D.'S TO PLAY MUSIC IN STEREO EQUIPMENT.

**A:** RIGHT.

**Q:** ARE THESE SIMILAR OR DIFFERENT FROM THAT?

**A:** THESE ARE VERY SIMILAR WITH THE EXCEPTION THESE CAN BE RECORDED, TOO.

**Q:** YOU USED C.D. RECORDABLE, CORRECT?

**A:** YES.

**Q:** TELL US WHAT THAT IS.

**A:** A C.D. RECORDABLE IS A C.D. THAT'S MADE THAT IF YOU HAVE A C.D. RECORDING DEVICE OR A C.D. WRITER OR A C.D. BURNER, DEPENDING ON THE TERM YOU USE, YOU PUT THIS BLANK C.D. INTO THE RECORDER, AND THEN YOU CAN MOVE FILES OF ANY SORT ONTO THAT.

**Q:** CAN A C.D. BE USED, AND I'M TALKING ABOUT A C.D. THAT IS A RECORDABLE C.D., CAN IT BE USED TO STORE FILES ON IT?

**A:** YES.

**Q:** ALL RIGHT.

WE SEE IN -- I'M SORRY -- PHOTOGRAPH J, OFF TO THE FAR LEFT WHAT APPEAR TO BE THE LETTERS C.D. DASH R. IS THAT CORRECT?

**A:** YES.

**Q:** WHAT DOES THAT MEAN?

**A:** C.D. RECORDABLE. IT IS A CASE THAT HOLDS THE ACTUAL C.D.

**Q:** SOME OF US MAY USE C.D.'S TO RECEIVE NEW SOFTWARE LET'S SAY.

**A:** YES, SIR.

**Q:** IS THAT THE SAME OR DIFFERENT FROM A C.D. RECORDABLE?

**A:** YOUR COMMERCIAL C.D.'S ARE NOT WRITEABLE. YOU CAN'T ERASE THEM. YOU CAN'T RECORD OVER THEM. ONCE THEY'VE HAD THE DATA ON IT, IT'S PERMANENT. THE C.D.R.'S, WHEN YOU GET THEM, WHEN THEY ARE BLANK, YOU CAN ADD INFORMATION TO THEM.

**Q:** UNTIL WHAT? IS THERE A POINT WHERE YOU CAN'T ADD ANY MORE?

**A:** YES, THERE IS. YOU CAN -- THERE IS A FUNCTION ON THE PROGRAM CALLED CLOSING THE SESSION. IF YOU WERE TO -- LET'S SAY I WERE TO TAKE A C.D., ONE OF THE C.D. WRITEABLES, C.D., PUT IT IN MY C.D. BURNER, CLOSE IT, I CAN PUT A COUPLE OF FILES ON IT. AND IF I WANTED TO COME BACK LATER AND PUT MORE FILES ON IT, I WOULDN'T CLOSE IT OR LOCK IT. I WILL LEAVE IT OPEN. AND THEN LATER DOWN THE ROAD I COULD COME BACK AND PUT ADDITIONAL FILES ON IT. ONCE I HAVE CLOSED THE SESSION, I HAVE EFFECTIVELY LOCKED IT, AND IT CAN'T BE WRITTEN TO.

**Q:** NOW, IN PHOTOGRAPH J ARE THERE ANY THINGS IN ADDITION TO THE COMPACT DISKS?

**A:** YES, THERE ARE.

**Q:** WHAT?

**A:** THERE ARE THREE ZIP DISKS.

**Q:** OKAY.

WHAT'S A ZIP DISK?

**A:** A ZIP DISK IS A -- IT'S A LITTLE PLASTIC CARTRIDGE. IT'S FATTER THAN A FLOPPY DISK THAT MOST PEOPLE ARE PROBABLY FAMILIAR WITH IN THE COMPUTERS. IT'S ABOUT THREE AND A HALF INCHES BY THREE AND A HALF INCHES SQUARE, AND IT HOLDS -- IT'S THE SAME THING AS A FLOPPY DISK WHERE IT HOLDS INFORMATION. YOU CAN PUT FILES ONTO IT, TAKE FILES OFF OF IT. YOU CAN, YOU KNOW, AT YOUR LEISURE.

**Q:** HOW DOES IT DIFFER FROM A C.D.?

**A:** THE C.D. IS THESE ARE DESIGNED TO HAVE THE INFORMATION PUT ONTO THEM. ONCE THEY ARE ON, THEY ARE ON PERMANENTLY. A ZIP DISK INFORMATION CAN BE OR FILES CAN BE PLACED ON THE ZIP DISK. THEY CAN BE TAKEN OFF THE ZIP DISK. THEY CAN BE MODIFIED, CHANGED. IT'S JUST A VERY HANDY WAY OF MOVING FILES AROUND AND STORING FILES.

**Q:** I THINK YOU ALSO USED THE TERM FLOPPY DISK. WHAT IS THAT?

**A:** A FLOPPY DISK IS A SMALL, ABOUT TWO AND A HALF TO -- ABOUT TWO-AND-A-HALF-INCH PLASTIC DISK THAT HOLD A MINIMAL AMOUNT OF INFORMATION. MOST COMPUTERS ARE EQUIPPED WITH THIS FLOPPY DISK. AND AGAIN IT'S THE

SAME TYPE OF THING. YOU CAN PUT FILES ON THE FLOPPY DISK; YOU CAN DELETE THEM; YOU CAN MOVE THEM AROUND; AND YOU CAN MODIFY THEM.

**Q:** ARE THESE FLOPPY DISKS THE LITTLE ITEMS THAT WE ALL WITH COMPUTERS USED FOR YEARS TO SAVE DATA TO A LITTLE DISK TO BE ABLE TO MOVE IT SOMEWHERE ELSE?

**A:** YES, SIR.

**Q:** HAVE C.D.'S AND ZIP DISKS TAKEN THEIR PLACE IN ANY WAY?

**A:** AS THE FILES WE'RE WORKING WITH ARE GETTING LARGER AND LARGER, THERE'S A NEED TO HAVE LARGER PIECES OF MEDIA TO STORE INFORMATION ON. AND THE ZIP DISKS AND THE C.D. ROMS ARE FILLING THAT NEED.

**Q:** CAN PICTURES OR IMAGES BE STORED ON COMPUTERS?

**A:** YES.

**Q:** HOW DOES THAT WORK?

**A:** TO THE COMPUTER, YOU KNOW, A DIGITAL PHOTOGRAPH IS THE SAME AS ANY OTHER SORT OF FILE. THE COMPUTER YOU JUST OPEN ANY NUMBER OF DIFFERENT PROGRAMS. INTERNET -- I'M SORRY -- THE WINDOWS EXPLORER BEING THE MOST COMMON. THAT ALLOWS YOU TO MOVE FILES AROUND. AND YOU JUST MOVE THE FILES OVER TO THEM.

**Q:** I THINK WHAT I'M REALLY ASKING IS HOW CAN A PICTURE ACTUALLY BE SOMETHING YOU CAN STORE ON A COMPUTER.

**A:** I'M SORRY. A PICTURE YOU CAN TAKE A PICTURE BY USING A DIGITAL CAMERA WHICH WILL TAKE THE PICTURE AND CREATE A COMPUTER FILE WITH IT. YOU CAN ALSO SCAN ANY SORT OF A PHOTOGRAPH AND ONCE YOU'VE SCANNED IT, IT WILL TURN THAT INTO A COMPUTER FILE.

**Q:** AND IS THAT SOMETHING AT LEAST AS FAR AS ONCE IT'S A COMPUTER FILE THAT CAN BE STORED ON THESE VARIOUS C.D.'S, DISK ZIPS, FLOPPY DISKS, ET CETERA?

**A:** YES, SIR.

**Q:** OR ON A COMPUTER'S HARD DRIVE ITSELF?

**A:** YES.

**Q:** IS THAT WHAT'S KNOWN AS A DIGITAL IMAGE?

**A:** YES, IT IS.

**Q:** IS THE SAME TRUE FOR MOVIES; CAN THEY BE ALSO TURNED INTO A FORM THAT CAN BE STORED ON A COMPUTER?

**A:** YES, THEY CAN.

**Q:** TELL US HOW THAT IS.

**A:** TYPICALLY IT IS -- YOU HAVE A DIGITAL CAMERA OR DIGITAL MOVIE CAMERA THAT WILL -- ACTUALLY LOOKS LIKE A REGULAR MOVIE CAMERA, BUT INSTEAD OF STORING IT ON TAPE, IT STORES IT TO SOME SORT OF MEMORY, WHETHER IT'S A, YOU KNOW, INTERNAL MEMORY TO A COMPUTER HARD DRIVE, THAT SORT OF THING.

ANOTHER WAY WOULD BE IF YOU HAD A MOVIE, YOU CAN ACTUALLY USE THAT DEVICE THAT CONVERTS IT FROM, YOU KNOW, SAY A V.H.S. TAPE, YOU KNOW, VIDEOTAPE, OVER TO A COMPUTER HARD DRIVE.

**Q:** SO AT LEAST FOR COMPUTER PURPOSES ONE DOESN'T HAVE TO HAVE AN OLD-FASHIONED V.H.S. VIDEOTAPE OR ANY OF THE PREDECESSORS TO THAT, IS THAT RIGHT?

**A:** THAT IS CORRECT.

**Q:** NOW, AS FAR AS BOTH THESE DIGITAL IMAGES, I THINK YOU DESCRIBED THEY CAN BE KEPT AS FILES ON A COMPUTER, IS THAT RIGHT?

**A:** THAT IS CORRECT.

**Q:** AS WELL AS DIGITAL MOVIES, THEY CAN ALSO BE KEPT AS FILES.

**A:** YES.

**Q:** CAN THEY BE COPIED FROM ONE LOCATION TO ANOTHER?

**A:** YES.

**Q:** HOW?

**A:** AGAIN, EVERY, YOU KNOW, THE COMPUTERS ALL HAVE DIFFERENT OPERATING SYSTEMS, BUT EACH OPERATING SYSTEM SUCH AS WINDOWS HAS ABILITY TO JUST OPEN UP LIKE THE WINDOWS EXPLORER AND THEN JUST CLICK ON A FILE AND EITHER DRAG IT OR YOU CAN CLICK COPY OR ANY NUMBER OF WAYS. BUT COMPUTERS ARE DESIGNED TO MOVE FILES AROUND.

**Q:** SO CAN A COMPUTER, CAN A FILE, WHETHER IT'S AN IMAGE OR A MOVIE THAT'S IN DIGITAL FORM BE MOVED OR COPIED FROM ONE COMPUTER TO ANOTHER?

**A:** TO THE COMPUTER IT'S MERELY A FILE. THE COMPUTER DOESN'T REALLY CARE WHAT TYPE OF FILE IT IS. SO YES.

**Q:** CAN THEY BE COPIED FROM A COMPUTER TO A FLOPPY DISK?

**A:** YES, THEY CAN.

**Q:** WHAT ABOUT FROM A COMPUTER TO A C.D.?

**A:** IF YOU HAVE THE PROPER C.D. WRITER, THEN, YES, IT CAN.

**Q:** WHAT ABOUT FROM A COMPUTER TO A ZIP DISK?

**A:** IF YOU HAVE THE PROPER -- IF YOU HAVE AN ACTUAL DISK, ZIP DISK DRIVE, THEN, YES, IT CAN.

**Q:** WHAT ABOUT THE REVERSE OF EACH OF THOSE EXAMPLES; CAN THOSE ALSO BE DONE AS WELL?

**A:** YES, SIR.

**Q:** CAN DIGITAL IMAGES BE DOWNLOADED FROM THE INTERNET?

**A:** YES, SIR.

**Q:** HOW DOES THAT WORK?

**A:** YOU GET ON THE INTERNET AND GO TO WHATEVER SITE YOU'RE INTERESTED IN. AND THEN IF IT'S A PICTURE, YOU MERELY HAVE TO PUT THE ARROW OF THE CURSOR OVER THAT PICTURE, CLICK ON THE RIGHT MOUSE BUTTON, LITTLE MENU THAT SAYS SAVE AS, YOU CLICK THE SAVE AS AND ASK WHERE YOU WOULD LIKE TO SAVE IT ON YOUR COMPUTER. VERY SIMPLE.

**Q:** CAN THAT ALSO BE DONE WITH DIGITAL MOVIES IF THEY ARE ON THE

INTERNET?

**A:** YES.

**Q:** ONCE AN INTERNET IMAGE OR FILE IS DOWNLOADED, CAN THAT BE SAVED TO, LET'S SAY, THE HARD DRIVE OF A COMPUTER?

**A:** YES, SIR.

**Q:** OR TO A ZIP DISK?

**A:** YES.

**Q:** OR TO A COMPACT OR -- I'M SORRY -- COMPACT DISK OR C.D.?

**A:** IF THEY HAVE THE PROPER WRITER, YES, THEY CAN.

**Q:** OR TO A FLOPPY DISK?

**A:** YES.

**Q:** NOW, IN YOUR EXAMINATION OF THE OFFICE AND PERHAPS YOU COULD TELL US A LITTLE BIT MORE ABOUT HOW THE EXAMINATION PROCESS WENT ON IN THE OFFICE, I KNOW YOU'VE DESCRIBED MAKING IMAGES OF THE COMPUTERS THAT WERE THERE. WHAT ELSE DID YOU DO?

**A:** I DID THE IMAGES. I WAS -- WELL, TYPICALLY WE'LL LOOK AROUND TO SEE IF THERE'S ANYTHING LIKE PASSWORDS. SOMETHING THAT MIGHT BE USEFUL DURING OUR EXAMINATION IN CASE WE COME IN FILES THAT ARE -- HAVE -- ARE PASSWORD-PROTECTED AND THAT SORT OF THING. SO SOMETIMES WE WILL LOOK AROUND FOR THAT SORT OF THING. WE WILL SEE IF THERE'S, OH, WE'LL TAKE A LOOK AND SEE WHAT TYPE OF EQUIPMENT THEY HAVE. WE MAY FIND AN EXOTIC FORM OF DISK DRIVER OR WE MAY FIND AN EXOTIC DISK IN WHICH CASE WE KNOW WE'VE GOT MORE TO LOOK FOR, SUCH AS WE FIND A DISK DRIVE, SAY A TAPE DRIVE, AND WE JUST FIND JUST A DRIVE, WE KNOW WE PROBABLY SHOULD LOOK OR TALK TO THE OFFICERS AT THE SCENE AND HAVE THEM LOOK AND SEE IF THERE ARE ANY TAPES THAT MIGHT CONTAIN DATA.

**Q:** WHAT'S A MODEM?

**A:** A MODEM IS AN ACCESS POINT FROM YOUR COMPUTER TO EITHER A TELEPHONE OR TO A CABLE.

**Q:** WHAT'S THE IDEA BEHIND HAVING A MODEM; WHAT DOES THAT DO?

**A:** THERE ARE A COUPLE OF DIFFERENT TYPES OF MODEM. YOU HAVE ONE MODEM THAT WILL JUST ALLOW YOUR COMPUTER TO INTERFACE WITH A TELEPHONE LINE. YOU CAN CALL UP INTERNET ACCESS. YOU CAN CALL UP A BULLETIN BOARD. THERE'S ALSO A CABLE MODEM WHICH ALLOWS YOU A HIGH-SPEED ACCESS TO THE INTERNET.

**Q:** DID YOU FIND ANY MODEMS INSIDE THE OFFICE THAT'S DEPICTED IN THE PHOTOGRAPHS IN EXHIBIT 102?

**A:** YES, I DID.

**Q:** FIRST OF ALL, IS IT LOCATED IN ONE OR MORE OF THE PHOTOGRAPHS?

**A:** IT IS LOCATED IN PHOTOGRAPH G AND IN PHOTOGRAPH H.

**Q:** COULD YOU INDICATE FOR THE JURY, PLEASE, WHERE THAT'S LOCATED.

**A:** CERTAINLY. ON G IT'S JUST BELOW THE TELEPHONE. I'M SORRY. THE TELEVISION SET. AND YOU CAN SEE THE SAME THING HERE ON H. IT'S BELOW THE TELEVISION.

**Q:** SO IT WOULD BE JUST TO THE LEFT OF OR IT WOULD BE TO THE LEFT SIDE OF PHOTOGRAPH H UNDERNEATH THAT WHAT APPEARS TO BE A SMALL T.V. SCREEN

**A:** YES, SIR.

**Q:** DID YOU EXAMINE THAT MODEM?

**A:** NOT AT LENGTH, NO.

**Q:** WERE YOU ABLE TO DETERMINE WHETHER OR NOT IT WAS, AND I THINK YOU USED THE TERM HIGH-SPEED MODEM?

**A:** IT APPEARS TO BE A HIGH-SPEED MODEM, YES, SIR.

**Q:** WHAT'S THE SIGNIFICANCE OF A HIGH-SPEED MODEM?

**A:** IT TRANSFERS FILES AT A MUCH GREATER SPEED THAN TELEPHONE, THAN A TELEPHONE LINE WOULD.

**Q:** DOES IT EVEN USE THE TELEPHONE?

**A:** NO, IT DOES NOT.

**Q:** HOW DOES IT WORK?

**A:** IT HOOKS UP TO THE -- IN THIS CASE TO A CABLE SYSTEM. AND ONCE IT'S ONTO A CABLE SYSTEM, IT'S JUST AT A MUCH -- AGAIN, THE CABLE SYSTEM IS A MUCH FASTER PIPELINE SO TO SPEAK TO THE INTERNET THAN A TELEPHONE LINE IS.

**Q:** THIS CABLE SYSTEM, IS THAT THE SAME, RELATED TO, OR NOT RELATED TO CABLE SYSTEMS THAT BRING TELEVISION INTO PEOPLE'S HOMES?

**A:** THEY ARE RELATED, YES, SIR.

**Q:** ARE THERE, AS FAR AS THAT, ONE CAN SUBSCRIBE TO AND THEN USE THESE CABLE-BASED HIGH-SPEED MODEM SYSTEMS?

**A:** YES, SIR.

**Q:** DO THESE HIGH-SPEED MODEMS THEN ALLOW ONE TO GET THINGS FROM THE INTERNET MORE QUICKLY THAN JUST USING A REGULAR TELEPHONE-STYLE MODEM?

**A:** YES, THEY DO.

IF I COULD GO BACK, TO BE HONEST, I DON'T RECALL WHETHER IT IS EITHER -- IT WAS EITHER A CABLE OR A D.S.L. LINE, WHICH IS -- I KNOW IT WAS A HIGH-SPEED INTERNET LINE. BUT SITTING HERE TRYING TO RECALL, I'M NOT SURE WHICH ONE IT IS. THE DIFFERENCE IS -- IF I MAY?

**Q:** YES.

**A:** -- IS A CABLE USES THE CABLE SERVICE. D.S.L. USES A SPECIAL PHONE LINE THAT'S HOOKED UP TO THE PHONE LINE. AGAIN, THEY ARE BOTH HIGH SPEED.

**Q:** SO THIS D.S.L. METHOD, IF IN FACT THAT'S WHAT IT WAS, THAT'S FROM A TELEPHONE COMPANY.

**A:** YES. IT WOULDN'T BE FROM THE PHONE COMPANY. IT'S FROM -- I'M SORRY. HIGH-SPEED ACCESS COMPANY SUCH AS PAC BELL OFFERS IT. ANY NUMBER OF COMPANIES OFFER IT. BUT IT JUST RUNS THROUGH A TELEPHONE LINE.

**Q:** IS THIS SOMETHING THAT'S THE SAME OR DIFFERENT FROM A REGULAR

TELEPHONE LINE THAT WE PUT INTO OUR TELEPHONES?

**A:** IT LOOKS LIKE AN OVERSIZED TELEPHONE LINE.

**Q:** NOW, DID YOU BECOME AWARE OR ARE YOU OTHERWISE FAMILIAR WITH THE LOCATION OF CERTAIN DISKS THAT WERE FOUND INSIDE THE OFFICE AREA OF THE RESIDENCE AS SHOWN IN EXHIBIT 102?

**A:** YES, I AM.

**Q:** ALL RIGHT.

FIRST OF ALL, ARE THEY DEPICTED IN ANY OF THE PHOTOGRAPHS THAT WE CAN SEE ON THIS EXHIBIT?

**A:** THEY WOULD BE IN ITEM J OR PHOTOGRAPH J.

**Q:** ALL RIGHT. LET'S TALK ABOUT PHOTOGRAPH J NOW AND MORE SPECIFICALLY CAN YOU DESCRIBE WHAT THAT CONSISTS OF.

**A:** IT CONSISTS OF TWO C.D. ROMS OR C.D.R.'S AND THREE ZIP DISKS.

**Q:** THERE APPEARS TO BE IN PHOTOGRAPH -- FIRST OF ALL, ARE YOU FAMILIAR WITH -- THAT IS, TO YOUR KNOWLEDGE, WHERE THE CONTENTS AS SHOWN IN PHOTOGRAPH J ON EXHIBIT 102 CAME FROM?

**A:** THEY CAME FROM THE BOOKSHELF DEPICTED ON PHOTOGRAPH F.

**Q:** ALL RIGHT.

YOU'VE POINTED NOW TO PHOTOGRAPH F IN PARTICULAR WHAT APPEARS TO BE A BOOKSHELF. IS THAT CORRECT?

**A:** YES, SIR.

**Q:** THERE ALSO APPEARS TO BE A YELLOW SIGN WITH THE NUMBER 12 ON IT. DO YOU SEE THAT IN PHOTOGRAPH F?

**A:** YES, SIR, I DO.

**Q:** IS THAT THE LOCATION FROM WHICH TO YOUR KNOWLEDGE THE ITEMS DEPICTED IN PHOTOGRAPH J CAME FROM?

**A:** YES, SIR.

**Q:** WERE YOU INVOLVED IN EXAMINING THE CONTENTS OF THOSE PARTICULAR ITEMS AS SHOWN IN PHOTOGRAPH J? I THINK YOU'VE DESCRIBED AS TWO C.D.'S AND THREE ZIP DISKS.

**A:** YES, SIR.

**Q:** TELL US ABOUT THE CIRCUMSTANCES OF THAT.

**A:** I EXAMINED THE -- BACK AT THE LABORATORY, I EXAMINED THE CONTENTS OF THOSE FILES OR OF THOSE C.D.'S AND THE ZIP DISKS.

**Q:** ALL RIGHT.

PERHAPS WE SHOULD GO BACK TO WHEN YOU WERE ACTUALLY IN THE OFFICE DURING THE EARLY MORNING HOURS OF FEBRUARY 5TH. YOU MADE COPIES OF I THINK IT WAS HARD DRIVES OF THESE COMPUTERS.

**A:** YES, SIR.

**Q:** GENERALLY WHAT OCCURRED AFTER THAT?

**A:** WHILE WAITING FOR THE -- WELL, AFTER THEY DISCOVERED THE C.D. ROMS AND THE ZIP DISKS, WE WENT AHEAD AND USED ONE OF THE COMPUTERS TO WHAT'S CALLED A PREVIEW, TO EXAMINE THEM TO SEE WHAT WAS ON THEM TO SEE IF THERE'S ANYTHING QUESTIONABLE OR ANYTHING THAT MIGHT LEAD TO THE WHEREABOUTS OF DANIELLE VAN DAM.

**Q:** ALL RIGHT.

YOU'VE USED A COUPLE OF TERMS. PREVIEW. WHAT DOES THAT MEAN?

**A:** PREVIEW, IT'S A TERM WE USE WHERE WE ARE ABLE TO LOOK AT THE PIECES OF MEDIA WITHOUT DOING ANY SORT OF RECORDING TO THEM, AND WE CAN LOOK AT THE CONTENTS OF THEM.

**Q:** ALL RIGHT.

AND YOU'VE ALSO USED THE TERM QUESTIONABLE. WHAT DO YOU MEAN BY QUESTIONABLE?

**A:** QUESTIONABLE IS KIND OF A BROAD TERM. IT'S USED PRIMARILY FOR THE AREA OF CHILD PORNOGRAPHY. WE'RE LOOKING AT IMAGES THAT WOULD BE OF

SOME -- SAY JUVENILES UNDER THE AGE OF EIGHTEEN. THAT'S QUESTIONABLE.

**Q:** ALL RIGHT.

WHEN YOU HAVE CONDUCTED THIS PREVIEW PROCESS, DID YOU OBSERVE ANY IMAGES THAT APPEARED TO BE QUESTIONABLE TO YOU?

**A:** YES.

**Q:** IN THE SEQUENCE OF EVENTS, WHAT OCCURRED NEXT?

**A:** ONCE WE DISCOVERED SOME QUESTIONABLE IMAGES, CONTACTED THE OFFICERS AT THE SCENE OR SOME DETECTIVES, GOT SERGEANT HOLMES, SHOWED THEM THE FILES. WE JUST DID REALLY A CURSORY EXAM. ONCE WE SAW ANYTHING QUESTIONABLE, WE WENT AHEAD AND STOPPED THE PREVIEW OF THAT PARTICULAR PIECE OF MEDIA AND SET IT ASIDE.

**Q:** FOR LATER EXAMINATION?

**A:** CORRECT.

SINCE WE HAD FOUND SOMETHING THAT WAS QUESTIONABLE, WE FELT IT BETTER TO TAKE IT BACK TO THE LABORATORY AND DO A MORE THOROUGH EXAMINATION THERE.

**Q:** ALL RIGHT.

DID YOU FINISH UP YOUR ACTIVITIES AT THE HOUSE, THEN, FOLLOWING THIS PREVIEW?

**A:** YES, SIR.

**Q:** WHAT DID YOU DO THEN?

**A:** ONCE WE FINISHED, WE MADE SURE THAT THE HOMICIDE DETECTIVES WERE AWARE OF THE LOCATION OF THE MEDIA. THEY WENT AHEAD AND IMPOUNDED IT PER SAN DIEGO P. D. POLICY, AND THEN WE LEFT.

**Q:** DID THERE COME A TIME WHEN YOU HAD THE OPPORTUNITY, THEN, TO VIEW THE CONTENTS AS SHOWN IN PHOTOGRAPH J ON EXHIBIT 102, THE TWO C.D.'S AND THREE ZIP DISKS, IN MORE DETAIL?

**A:** YES, SIR.

**Q:** WHEN DID THAT TAKE PLACE?

**A:** THAT TOOK PLACE SEVERAL DAYS LATER, WHEN THE MEDIA WAS BROUGHT TO THE LABORATORY.

**Q:** HOW DID YOU DO THAT?

**A:** ONCE AGAIN IMAGES ARE -- COPIES OF MEDIA ARE MADE, AND THEN THE EXAMINATION IS DONE ON THE COPIES.

**Q:** ARE THERE METHODS BY WHICH FILES ARE KEPT, WHETHER IT'S ON A HARD DRIVE, A C.D., A ZIP DISK, AND SO FORTH?

**A:** I'M SORRY, I DON'T --

**Q:** SURE.

IS THERE A WAY TO ORGANIZE FILES, WHETHER IT'S ON A HARD DRIVE OF A COMPUTER OR THE VARIOUS TYPES OF DISKS THAT ONE CAN STORE THINGS ON?

**A:** YES, SIR.

**Q:** HOW?

**A:** BASICALLY -- PROBABLY THE BEST WAY TO DESCRIBE IT IS THE PIECE OF MEDIA, THE HARD DRIVE, THE FLOPPY DISK, THE ZIP DISK IS PICTURE AS A FILE CABINET AND EACH FILE CABINET YOU'VE GOT SEVERAL DRAWERS OR FOLDERS AND EACH FOLDER CAN CONTAIN ADDITIONAL FOLDERS, AND THEY CAN CONTAIN FOLDERS INSIDE. SO IF YOU WANTED TO ORGANIZE SOMETHING, YOU COULD JUST HAVE SEVERAL FOLDERS INSIDE EACH DRAWER.

**Q:** DID YOU HAVE THE OPPORTUNITY TO VIEW THESE C.D.'S AND ZIP DISKS?

**A:** YES, I DID.

**Q:** WHEN DID THAT TAKE PLACE?

**A:** AGAIN TOOK PLACE SEVERAL DAYS AFTER THE -- AFTER WE DID THE ON-SITE IMAGING.

THE COURT: MR. CLARKE, I WANT EVERYBODY IN THE ROOM, OPEN THOSE EYES. BREATHE. I THOUGHT D.N.A. WAS PUTTING YOU TO SLEEP, FOLKS, BUT THIS HAS GOT A COUPLE OF YOU HAVING A HARD, HARD TIME WITH THIS.

OKAY. THEY ARE BACK WITH YOU, MR. CLARKE.

MR. CLARKE: GREAT. THANK YOU, YOUR HONOR. JUST AS A PREVIEW, WE ARE PROBABLY JUST A FEW MINUTES AWAY FROM --

THE COURT: SETTING UP THE EQUIPMENT?

MR. CLARKE: EXACTLY, YES.

THE COURT: YOU'RE A FEW MINUTES AWAY FROM A STRETCH BREAK, LADIES AND GENTLEMEN, SO HANG IN THERE. THIS GOES TO SOME OF YOU IN THE AUDIENCE AS WELL.

BY MR. CLARKE:

**Q:** WERE YOU ABLE TO LOOK AT ALL THREE OF THE ZIP DISKS AND THE TWO C.D.'S IN ITEM 12?

**A:** YES, SIR, I WAS.

**Q:** CAN YOU TELL US ABOUT -- WERE YOU ABLE TO VIEW ALL FIVE OF THOSE, BY THE WAY?

**A:** YES.

**Q:** CAN YOU TELL US ABOUT WHETHER OR NOT THE FILES WERE ORGANIZED INTO FOLDERS ON THOSE C.D.'S AND ZIP DISKS OR NOT?

**A:** THE PIECES OF MEDIA WERE VERY WELL ORGANIZED. THEY HAD FILES WITH NAMES AND SUBFOLDERS WITH NAMES, SUCH AS THERE WAS A FOLDER CARTOONS. UNDER CARTOONS ARE OTHER FOLDERS THAT HAD DESCRIPTIVE NAMES OF DIFFERENT TYPES OF CARTOONS.

MR. CLARKE: COULD I HAVE JUST A MOMENT, YOUR HONOR?

THE COURT: SURE.

(DISCUSSION OFF THE RECORD BETWEEN MR. CLARKE

AND MR. DUSEK.)

BY MR. CLARKE:

**Q:** IN YOUR VIEWING OF THOSE C.D.'S AND ZIP DISKS NOW, I THINK YOU SAID A

FEW DAYS LATER OR SEVERAL DAYS LATER, WERE YOU ABLE TO VIEW ANY QUESTIONABLE IMAGES AS YOU'VE USED THAT TERM?

A: YES, SIR.

Q: WAS THAT TRUE ON ONE OR MORE OF THE C.D.'S?

A: THAT WAS TRUE ON SEVERAL OF THE -- FROM A STILL STANDPOINT ON SEVERAL, TWO OF THE C.D.'S, AND TWO OF THE ZIP DISKS.

Q: NOW, YOU SAID THE WORD STILL. WHAT DOES THAT MEAN?

A: I'M SORRY. DIGITAL PHOTOGRAPHS.

Q: NOT A MOVIE?

A: NOT A MOVIE. WELL, BOTH ACTUALLY AS WELL AS MOVIES ON I BELIEVE IT WAS THE C.D. ROMS.

Q: THAT WAS GOING TO BE MY NEXT QUESTION. ON EITHER OF THE C.D.'S OR ANY OF THE ZIP DISKS, DID YOU VIEW ANY QUESTIONABLE MOVIES?

A: YES.

Q: DID ANY OF THOSE C.D.'S WITH QUESTIONABLE MOVIES HAVE ANY LABELS ON THEM? AND BY LABELS I'M NOT REFERRING TO A LABEL ON THE C.D. ITSELF, BUT THE ELECTRONIC LABEL.

A: ON TWO OF THE C.D.R.'S THERE WERE LABELS.

Q: OKAY.

WE BETTER DEFINE WHAT A LABEL IS.

A: WHAT A LABEL IS IS WHEN YOU RECORD SOMETHING WITH A C.D.R. AND YOU PUT THE RECORDABLE C.D. INTO YOUR RECORDER, AND YOU START, YOU TELL -- YOU WANT TO RECORD CERTAIN FILES, THERE IS A LABEL WHICH BY JUST DEFAULT IS USUALLY THE DATE THAT YOU'RE CREATING THAT C.D. ROM. IN THIS CASE IF YOU WANT, YOU CAN CHANGE THAT LABEL TO ANYTHING YOU WANT. THAT WAY THE PURPOSE OF THIS IS WHEN YOU PUT THE C.D. ROM INTO A COMPUTER, WHEN YOU HAVE A LITTLE -- BRING UP THE WINDOWS, THE WINDOWS EXPLORER, EACH DRIVE HAS -- THERE'S A LITTLE DRIVE HAS A LETTER NEXT TO IT, THE NAME OF ONE OF THE LABELS WILL SHOW UP NEXT TO THAT DRIVE. THAT LITTLE ICON THAT SHOWS THE DRIVE FOR THE C.D. ROM

DRIVE. THAT WAY YOU KNOW WHAT C.D. YOU HAVE IN THE PLAYER.

**Q:** SO IF THERE'S AN ELECTRONIC LABEL THAT'S DIFFERENT FROM THE DATE THAT ONE CREATES IT, DOES ONE ACTUALLY HAVE TO TYPE THAT IN?

**A:** YES.

**Q:** WITH RESPECT TO THESE QUESTIONABLE VIDEOS, DID EITHER OF THE C.D.'S HAVE A LABEL TYPED IN?

**A:** YES.

**Q:** TELL US ABOUT THAT.

**A:** THERE WERE TWO. EACH ONE HAD THE SAME LABEL, AND THE NAME OF IT WAS SPECTRUM, A SPACE, THEN A ZERO AND A ONE.

**Q:** WITH REGARD TO YOUR ACTIVITIES IN THE WESTERFIELD HOUSE, DID YOU FOR ANY REASON COME TO BE FAMILIAR WITH THE WORD SPECTRUM?

**A:** YES.

**Q:** WHY IS THAT?

**A:** THERE WERE SOME DIFFERENT I THINK THERE WAS A -- SOME DIFFERENT MATERIALS THAT SPOKE OF A COMPANY CALLED SPECTRUM DESIGN. I WAS ALSO INFORMED THAT WAS THE NAME OF MR. WESTERFIELD'S BUSINESS.

**Q:** WITH REGARD TO VARIOUS OF THESE STILL IMAGES, AND I THINK YOU'VE DESCRIBED QUESTIONABLE MOVIES AS WELL, ARE THEY IN A FORMAT THAT WE CAN PLAY THEM IN COURT HERE?

**A:** YES, SIR, THEY ARE.

MR. CLARKE: ALL RIGHT.

THE COURT: ALL RIGHT.

LADIES AND GENTLEMEN, I THINK WE'VE COME TO A POINT WHERE ALL OF YOU NEED A NICE STRETCH BREAK. AND WE ARE GOING TO SET UP THE EQUIPMENT. SO WE ARE GOING TO GIVE YOU A LITTLE EXTRA TIME SO YOU CAN COME BACK WIDE-EYED AND BUSHY-TAILED.

PLEASE REMEMBER THE ADMONITION OF THE COURT NOT TO DISCUSS ANY OF

THE EVIDENCE OR TESTIMONY AMONG YOURSELVES OR WITH ANY OTHER PERSONS NOR FORM OR EXPRESS ANY OPINIONS ON THE MATTER UNTIL IT'S SUBMITTED TO YOU FOR DECISION.

LET'S BE BACK OUTSIDE THE DOOR AT FIVE MINUTES TO 3:00. SO THAT WILL BE 2:55, PLEASE, FOLKS.

(THE JURY RECESSED AT 2:38 O'CLOCK, P.M.)

(THE FOLLOWING OCCURRED OUT OF THE PRESENCE OF

THE JURY:

THE COURT: ALL RIGHT. THE RECORD SHOULD REFLECT THE JURORS AND ALTERNATES HAVE LEFT THE COURTROOM. PLEASE KEEP IT DOWN, LADIES AND GENTLEMEN.

I HAVE RECEIVED TWO MEDIA REQUESTS, SO I AM GOING TO TAKE CARE OF THOSE RIGHT NOW. THE FIRST REQUEST IS RELATIVE TO MONDAY'S HEARING. THE ISSUES TO BE RESOLVED ON MONDAY DEAL WITH EVIDENTIARY ISSUES THAT MAY OR MAY NOT LEAD TO ADMISSIBLE EVIDENCE. AS A RESULT, MONDAY'S HEARING WILL BE CLOSED TO THE PUBLIC AND MEDIA.

IN ADDITION TO THAT, MY STAFF HAS FIELDDED A NUMBER OF REQUESTS FOR COPIES OF THE COURT'S ORDER RELATIVE TO THE EXCLUSION OF AN INDIVIDUAL FROM THE COURT. THOSE WILL BE AVAILABLE BY CONTACTING MY COURT REPORTER.

WE WILL BE IN RECESS UNTIL FIVE MINUTES TO 3:00.

(END OF PROCEEDINGS OUT OF THE PRESENCE OF THE JURY.)

(RECESS, 2:39 O'CLOCK, P.M., TO 2:55 O'CLOCK, P.M.)

(AT 3:05 P.M. THE JURY ENTERED THE COURTROOM AND THE FOLLOWING PROCEEDINGS WERE HAD:)

5

6 THE COURT: WELCOME BACK, LADIES AND GENTLEMEN.

7 IT'S INTERESTING, THE MEDIA HAS GIVEN UP THEIR

8 PRIME FRONT ROW SEATS TO MOVE INTO THE CORNER SO THEY CAN SEE

9 THE T.V. MONITOR. I WON'T COMMENT ON THAT MOVE.

10 ALL RIGHT. MR. CLARKE, YOU MAY PROCEED.

11 MR. CLARKE: THANK YOU, YOUR HONOR.

12 Q. MR. WATKINS, HAVE WE SET UP THIS MONITOR AND LAPTOP

13 SO THAT NOW VARIOUS OF THESE STILL IMAGES AND DIGITAL VIDEOS CAN

14 BE PLAYED TO THE JURY?

15 A. YES, SIR.

16 MR. CLARKE: ALL RIGHT. YOUR HONOR, WITH THE COURT'S

17 PERMISSION, THIS WILL BE DONE IN ABOUT FOUR OR FIVE SEGMENTS.

18 EACH SEGMENT I WILL ASK THAT THE LIGHTS BE DRAWN HALFWAY DOWN.

19 THE COURT: LET'S DESIGNATE THE DISK YOU ARE USING AS AN

20 EXHIBIT AND THEN PLEASE --

21 MR. CLARKE: WITH PRINTED VERSIONS OF THE STILL IMAGES

22 AND A VHS VIDEOTAPE.

23 THE COURT: ALL RIGHT. YOU CAN JUST DO THAT LATER THEN.

24 FINE.

25 MR. CLARKE: ALL RIGHT. FINE.

26 Q. MR. WATKINS, WITH REGARD TO THE VARIOUS IMAGES THAT

27 YOU FOUND ON THESE C. D.S AND ZIP DISKS, TO YOUR KNOWLEDGE, HAVE

28 THEY BEEN ARRANGED BY AN IDENTIFYING NUMBER AS TO WHICH C. D.?

6312

1 A. YES, SIR, THEY HAVE.

2 Q. OR ZIP DISK?

3 A. YES, SIR.

4 Q. TO YOUR KNOWLEDGE, ARE THE MOVIES AT THE END

5 PORTION OF THIS DEMONSTRATION?

6 A. YES.

7 Q. SO THAT AT LEAST THE FIRST PORTION DEALS WITH STILL

8 IMAGES THEMSELVES?

9 A. YES, SIR.

10 MR. CLARKE: YOUR HONOR, WITH THE COURT'S PERMISSION, CAN

11 WE LOWER THE LIGHT?

12 THE COURT: ALL RIGHT.

13 MR. CLARKE, YOU BETTER GET GOING BEFORE I GET IN

14 ANY MORE TROUBLE OVER HERE.

15 (STILL IMAGES BEING SHOWN TO THE JURY AND ALTERNATES.)

16 MR. CLARKE: ALL RIGHT.

17 Q. MR. WATKINS, THERE WERE A NUMBER OF STILL IMAGES

18 THAT WERE SHOWN ON THE SCREEN THERE. DID YOU SEE THOSE?

19 A. YES, SIR.

20 Q. ARE THOSE, IN FACT, ACCURATE IMAGES IN TERMS OF

21 WHAT WAS DISPLAYED FROM WHAT YOU FOUND ON THE C. D. THAT WAS

22 LABELED AT THE BEGINNING OF THAT PRESENTATION?

23 A. YES, SIR, IT IS.

24 Q. WAS THAT, IN FACT, ONE OF THE C. D.S THAT YOU

25 VIEWED AS A RESULT OR AFTER THEIR SEIZURE FROM THE OFFICE AREA

26 OF MR. WESTERFIELD'S RESIDENCE?

27 A. THAT WAS ONE OF THE ZIP DISKS, YES, SIR.

28 MR. CLARKE: ALL RIGHT. WITH THE COURT'S PERMISSION,

6313

1 YOUR HONOR, I'LL BE PLAYING THE NEXT ZIP DISK OR C. D.

2 THE COURT: ALL RIGHT.

3 (STILL IMAGES BEING SHOWN TO JURY AND ALTERNATES.)

5 BY MR. CLARKE:

6 Q. ALL RIGHT. MR. WATKINS, DID THE VARIOUS IMAGES  
7 THAT WE'VE JUST SEEN ACCURATELY DEPICT THOSE IMAGES SEIZED FROM  
8 ONE OF THE ZIP DISKS THAT WAS TAKEN FROM MR. WESTERFIELD'S  
9 OFFICE?

10 A. YES, SIR.

11 Q. THERE APPEAR TO BE ANIMATED OR CARTOON TYPE IMAGES;  
12 IS THAT CORRECT, IN THIS GROUP?

13 A. YES, SIR.

14 Q. IS THERE A NAME FOR THOSE IN YOUR PARTICULAR LINE  
15 OF WORK?

16 A. OH, ONE OF THE NAMES WE HEAR IT REFERRED TO IS  
17 ANIME'.

18 Q. COULD YOU SPELL THAT?

19 A. A-N-I-M-I-E, I BELIEVE.

20 Q. WHAT DOES THAT MEAN OR REFER TO?

21 A. ANIMATED OR ANIMATION.

22 MR. CLARKE: ALL RIGHT. YOUR HONOR, WITH THE COURT'S  
23 PERMISSION, I'LL BEGIN THE NEXT SEGMENT.

24 THE COURT: ALL RIGHT.

25 (STILL IMAGES BEING PLAYED FOR THE JURY AND ALTERNATES.)

26

27 BY MR. CLARKE:

28 Q. MR. WATKINS, THERE APPEARED TO BE I THINK THREE OR  
6314  
1 SO IMAGES THAT WERE PORTRAYED THERE. DID THOSE ACCURATELY  
2 DEPICT THOSE IMAGES THAT YOU OBTAINED FROM -- I THINK THIS IS

3 ONE OF THE C. D.S FROM EXHIBIT NO. 12 FROM THE OFFICE?

4 A. YES, SIR.

5 Q. DID THIS SIMILARLY HAVE ANIME' TIME IMAGES ON THEM?

6 A. YES, SIR.

7 MR. CLARKE: ALL RIGHT. AND YOUR HONOR, I BELIEVE THE

8 MOVIES START NOW, SO WITH THE COURT'S PERMISSION, I'LL PLAY THIS

9 SEGMENT.

10 THE COURT: ALL RIGHT. HOW MANY SEGMENTS WILL THERE BE,

11 MR. CLARKE?

12 MR. CLARKE: I BELIEVE TWO.

13 THE COURT: ALL RIGHT. THANK YOU.

14 MR. CLARKE: I'M SORRY. I THINK THERE'S THREE.

15 THE COURT: ALL RIGHT.

16 (MOVIE SEGMENTS SHOWN TO JURY AND ALTERNATES.)

17

18 BY MR. CLARKE:

19 Q. MR. WATKINS, WE SAW WHAT APPEARED TO BE A MOVIE, IS

20 THAT RIGHT, ON THIS PARTICULAR C. D.?

21 A. YES, SIR.

22 Q. AT THE TIME THAT YOU WERE ABLE TO SEIZE THAT -- I'M

23 SORRY.

24 PERHAPS WE COULD HAVE THE LIGHTS, YOUR HONOR?

25 THE COURT: ALL RIGHT.

26 MR. CLARKE, CAN OPHELIA MOVE BACK INTO POSITION?

27 MR. CLARKE: YES, ACTUALLY, AND IF WE COULD, WITH THE

28 COURT'S PERMISSION, DISASSEMBLE?

6315

1 THE COURT: OH, ALL RIGHT.

2 (PAUSE)

3 THE COURT: OKAY, MR. CLARKE.

4 MR. CLARKE: THANK YOU, YOUR HONOR.

5 Q. MR. WATKINS, WITH REGARD TO ALL OF THOSE VIDEOS,

6 WHAT WAS SHOWN ON THE MONITOR ACCURATELY PORTRAY WHAT YOU

7 OBSERVED WHEN YOU OBTAINED THOSE I BELIEVE C. D.S IN THE CASE OF

8 THE VIDEOS FROM ITEM NUMBER 128 FROM MR. WESTERFIELD'S OFFICE?

9 A. YES, SIR.

10 (MARKED FOR ID: = TRIAL EX.138, SERIES OF IMAGES)

11 (MARKED FOR ID: = TRIAL EX. 139, VHS TAPE OF IMAGES)

12 Q. ALL RIGHT.

13 YOUR HONOR, I BELIEVE I'VE EITHER HAD MARKED OR

14 WILL HAVE MARKED TWO EXHIBITS;

15 FIRST OF WHICH CAN BE DESCRIBED AS EXHIBIT 138,

16 WHAT APPEARS TO BE A SERIES OF PRINTED PAGES.

17 A. YES, SIR.

18 Q. ONE OF WHICH ON THE FRONT PAGE IS LABELED C. D.

19 16327 AND THEN WITH A SERIES OF IMAGES; IS THAT CORRECT, MR.

20 WATKINS?

21 A. YES, SIR, IT IS.

22 Q. DOES THAT PACKET APPEAR TO HAVE PRINTED VERSIONS OF

23 EACH OF THE STILL IMAGES THAT WERE JUST DISPLAYED TO THE JURY?

24 A. YES, SIR, IT DOES.

25 MR. CLARKE: YOUR HONOR, I'VE HAD MARKED AS EXHIBIT 139

26 WHAT APPEARS TO BE A VHS VIDEOTAPE.

27 Q. AND MR. WATKINS, HAVE YOU HAD AN OPPORTUNITY TO

28 VIEW THIS PARTICULAR VIDEOTAPE, WHAT'S BEEN MARKED EXHIBIT 139,  
6316

1 PRIOR TO YOUR TESTIMONY TODAY?

2 A. YES, SIR, I HAVE.

3 Q. DOES THAT APPEAR TO CONTAIN AT LEAST VIDEO-TAPED

4 VERSIONS OF EACH OF THE FILMS, OR MOVIES RATHER, THAT WERE SHOWN

5 ON THE MONITOR IN FRONT OF THE JURY AT LEAST A FEW MINUTES AGO?

6 A. YES, SIR, IT DOES.

7 MR. CLARKE: MAY I HAVE JUST A MOMENT, YOUR HONOR?

8 THE COURT: SURE.

9 MR. CLARKE: YOUR HONOR, I HAVE A ONE-PAGE DOCUMENT I'D

10 ASK BE MARKED AS PEOPLE'S NEXT IN ORDER.

11 THE COURT: 140.

12 (MARKED FOR ID: = TRIAL EX. 140, DIRECTIONS TO GLAMIS)

13 MR. CLARKE: THANK YOU. IT'S DESCRIBED AS A EIGHT AND A

14 HALF BY ELEVEN SINGLE PAGE "DIRECTIONS TO GLAMIS."

15 Q. MR. WATKINS, I'D LIKE TO SHOW YOU WHAT'S BEEN

16 MARKED EXHIBIT 140 AND ASK IF YOU IDENTIFY -- I'M SORRY, IF THAT

17 APPEARS FAMILIAR TO YOU?

18 A. YES, SIR, IT DOES.

19 Q. WHAT IS IT?

20 A. IT IS A DOCUMENT THAT I RECOVERED FROM ACTUALLY

21 EACH OF THE COMPUTERS IN THE OFFICE. THIS DOCUMENT WAS ON THERE

22 AND IT'S -- THE FILE NAME IS "GLAMIS. PERIOD. DOC, D-O-C.

23 Q. SO THAT WAS ACTUALLY -- WELL, EXHIBIT 140 IS A  
24 PRINTED VERSION OF A COMPUTER FILE YOU FOUND ON ONE OF THE  
25 COMPUTERS IN THE OFFICE?

26 A. ACTUALLY ON BOTH OF THE COMPUTERS.

27 Q. SO THE SAME DOCUMENT WAS ON BOTH OF THE COMPUTERS  
28 IN THE OFFICE?

6317  
1 A. YES, SIR. THAT IS CORRECT.

2 Q. WAS THIS A FILE THAT YOU WERE ULTIMATELY ABLE TO  
3 OBTAIN AND VIEW FROM YOUR -- I THINK YOU CALLED IT IMAGING  
4 PROCESS OF THE HARD DRIVES?

5 A. YES, SIR, FROM MY EXAMINATION OF THE IMAGE, YES,  
6 SIR.

7 Q. DOES IT APPEAR TO CONTAIN INFORMATION ON HOW TO GET  
8 TO THE GLAMIS AREA?

9 A. YES, SIR.

10 MR. CLARKE: ALL RIGHT. THANK YOU.

11 I HAVE NO MORE QUESTIONS, YOUR HONOR.

12 THE COURT: ALL RIGHT. CROSS-EXAMINATION.

13

14 CROSS-EXAMINATION +

15 BY MR. FELDMAN:

16 Q. ON THAT 140 DOES IT TALK ABOUT DIRECTIONS TO GLAMIS  
17 IN A MOTOR HOME?

18 A. GOOD AFTERNOON, MR. FELDMAN.

19 Q. I'M SORRY. MR. WATKINS, WE'VE MET BEFORE, IS THAT  
20 RIGHT?

21 A. YES.

22 Q. YOU'VE ALLOWED ME IN YOUR LAB?

23 A. YES, SIR.

24 Q. YOU'VE ALLOWED MS. JONES TO COME TO YOUR LAB?

25 A. YES, SIR.

26 Q. SORRY I JUMPED UP.

27 WITH REGARD TO THE -- SORRY, MR. WATKINS.

28 DIRECTING YOUR ATTENTION TO 140, DOESN'T TALK ABOUT  
6318

1 A MOTOR HOME, DOES IT, IN TERMS OF DRIVING IN A MOTOR HOME?

2 A. NO, SIR, IT DOES NOT.

3 Q. IT SPECIFICALLY INDICATES A PLACE TO LOOK FOR

4 DAVID'S MOTOR HOME; ISN'T THAT CORRECT?

5 A. YES, SIR. THAT IS CORRECT.

6 Q. AND THAT CAME FROM THE COMPUTER; IS THAT CORRECT?

7 A. YES, SIR.

8 Q. DIRECTING YOUR ATTENTION TO THE BOARD BEHIND YOU, I

9 JUST SAID IT CAME FROM THE COMPUTER. HOW MANY COMPUTERS CAN YOU

10 TELL US ARE IN 102, SIR?

11 A. 102?

12 Q. I'M SORRY, THAT'S THE EXHIBIT RIGHT BEHIND YOU.

13 A. OH, I'M SORRY. THERE ARE -- ON THE EXHIBIT HERE

14 THERE ARE TWO COMPUTERS.

15 Q. AND HOW MANY COMPUTERS DID YOU FIND IN MR.

16 WESTERFIELD'S RESIDENCE?

17 A. THERE WERE THE TWO COMPUTERS IN THE OFFICE. ONE

18 COMPUTER IN ONE OF THE BEDROOMS, A FOURTH COMPUTER, WHICH WAS A  
19 LAPTOP THAT WAS BROUGHT TO ME BY LIEUTENANT DUNCAN. I DON'T  
20 KNOW WHERE IT WAS RETRIEVED FROM, AND A PALM PILOT ALSO BROUGHT  
21 TO ME BY LIEUTENANT DUNCAN.

22 Q. YOU CONSIDER A PALM PILOT KIND OF EQUIVALENT OF A  
23 COMPUTER?

24 A. YES, SIR.

25 Q. INDEPENDENT OF THE PALM -- WELL, WERE THERE -- LET  
26 ME JUST DO SOME DEFINING HERE FOR A MINUTE.

27 WITH REGARD TO THE MOVIE IMAGES THAT WERE JUST  
28 PLAYED, THOSE ARE CALLED MPEGs, AREN'T THEY?

6319

1 A. SEVERAL OF THEM WERE MPEGs AND I THINK THERE WAS  
2 ONE WHICH WAS AN AVI.

3 Q. OKAY. SO WHEN YOU, A COMPUTER FORENSIC EXPERT, ARE  
4 GOING THROUGH A COMPUTER, YOU'RE LOOKING FOR FILES THAT ARE  
5 CALLED EXTENSIONS, AREN'T THEY?

6 A. YES, SIR. THAT IS CORRECT.

7 Q. I SHOULD DO IT THIS WAY, I'M SORRY.

8 (MARKED FOR ID: = TRIAL EX. 141, SHEET OF PAPER)

9 THE COURT: ALL RIGHT. THE SHEET WILL BE 141 FOR  
10 IDENTIFICATION.

11 MR. FELDMAN: THANK YOU, YOUR HONOR.

12 IT'S GETTING HARDER AND I'M GETTING SHORTER.

13 THE WITNESS: I KNOW THAT FEELING, SIR.

14 MR. FELDMAN: YOUR HONOR, FOR THE RECORD, ON THE BLANK  
15 PIECE OF PAPER I'VE PLACED AN EXHIBIT TAG THAT'S 144.

16 THE COURT: IT SHOULD BE 141.

17 MR. FELDMAN: MAYBE IT IS AND I JUST MISREAD IT. I'M

18 SORRY, IT DOES APPEAR TO BE 141, YOUR HONOR.

19 THE COURT: ALL RIGHT, THANK YOU.

20

21 BY MR. FELDMAN:

22 Q. I'M GOING TO LABEL THIS "EXTENSIONS." I THINK I

23 WANT TO DIVIDE IT INTO MOVIES AND STILLS.

24 FIRST, WITH REGARD TO THE COMPUTER FILING SYSTEM,

25 WHETHER IT'S I GUESS WINDOWS OR DOS, WHEN YOU CREATE A FILE YOU

26 CAN NAME IT WHATEVER YOU WANT TO NAME IT, BUT THERE'S SOMETHING

27 THAT'S CALLED AN EXTENSION, IS THAT RIGHT?

28 A. YES, SIR. THAT IS CORRECT.

6320

1 Q. WHAT'S AN EXTENSION?

2 A. AN EXTENSION IS A DESCRIPTOR OF THE FILE. FOR

3 EXAMPLE, IF I WERE TO WRITE -- I'LL SLOW DOWN. IF I WERE TO

4 WRITE A LETTER, I WERE TO NAME IT LETTER PERIOD OR DOT TXT, THE

5 "TXT" IS THAT THREE LETTER EXTENSION AFTER THE PERIOD THAT

6 STANDS FOR TEXT. THE WORD "LETTER" IS THE NAME OF THE DOCUMENT.

7 AND AGAIN, A THREE LETTER EXTENSION IS JUST DESCRIPTIVE OF THE

8 TYPE OF FILE.

9 Q. THE JURY JUST SAW SOMETHING THAT LOOKED LIKE BLURTS

10 OF MOVIES, SEGMENTS OF A MOVIE; IS THAT RIGHT?

11 A. YES, SIR.

12 Q. THESE ARE REFERRED TO AS DOT MPG; IS THAT CORRECT?

13 A. MPG, MPEG, BOTH.

14 Q. ALSO THEY'RE REFERRED AS AVIS; IS THAT CORRECT,

15 A-V-I?

16 A. YES, SIR.

17 Q. THEY'RE ALSO REFERRED TO AS DOT MOV; IS THAT

18 CORRECT?

19 A. YES, SIR.

20 Q. WITH REGARD TO THE STILLs, THEY'RE CALLED JPEGS,

21 AREN'T THEY?

22 A. YES, SIR.

23 Q. AND THAT'S A "J". CAN YOU TELL THAT THAT'S A "J"?

24 A. YES, SIR.

25 Q. IT'S ALSO ABBREVIATED JPEG; IS THAT CORRECT?

26 A. YES, SIR.

27 Q. AND THERE'S ALSO SOMETHING CALLED A GIF OR GIF?

28 A. YES, SIR.

6321

1 Q. WHAT ELSE ARE THERE THAT REFLECT STILLs, IF

2 ANYTHING?

3 A. THOSE ARE THE MOST COMMON ONES THAT WE SEE. YOU

4 CAN HAVE, YOU KNOW, BMPS. THERE'S SEVERAL OTHERS.

5 Q. SO AS PART OF YOUR FORENSIC WORK, WHEN YOU TOLD THE

6 JURY THAT YOU DID A SCREENING, YOU HAVE A COMPUTER PROGRAM THAT

7 ALLOWS YOU TO SEARCH THE MEMORY OF THE COMPUTER TO TRY AND

8 IDENTIFY THESE EXTENSIONS; IS THAT CORRECT?

9 A. IT ACTUALLY LOOKS FOR MORE THAN JUST THE EXTENSION.

10 THERE'S A PIECE OF CODE AT THE BEGINNING OF EACH FILE CALLED A

11 HEADER, AND THE HEADER ACTUALLY TELLS THE COMPUTER WHAT TYPE OF  
12 FILE IT IS. SUCH AS AN EXTENSION TELLS ME, THE USER, WHAT FILE  
13 IT'S SUPPOSED TO BE, THE HEADER TELLS THE COMPUTER WHAT IT IS.  
14 I CAN CHANGE AN EXTENSION TO ANY EXTENSION I WANT.  
15 THE COMPUTER IS STILL GOING TO SEE THAT HEADER AND WILL KNOW WHAT  
16 TYPE OF FILE IT IS.

17 Q. THE POINT I'M TRYING TO COMMUNICATE, THOUGH, IS  
18 WITH REGARD TO FIRST THE MOVIES, THEY WERE EITHER MPEGS OR AVIS,  
19 CORRECT?

20 A. YES, SIR.

21 Q. WITH REGARD TO THE STILLS, THEY WERE EITHER JPEGS,  
22 GIFS OR BMP FILES, IS THAT RIGHT?

23 A. BMPS OR ANY NUMBER OF GRAPHIC IMAGES.

24 Q. NOW HOW MANY GRAPHIC IMAGES -- PART OF YOUR JOB WAS  
25 TO DETERMINE THE CONTENT OF THE COMPUTERS, IS THAT RIGHT, SIR?

26 A. YES, SIR.

27 Q. HOW MANY IMAGES DID YOU FIND? FIRST YOU TOLD US --

28 I'M SORRY -- THERE WERE TWO COMPUTERS IN THE OFFICE, AS YOU PUT  
6322  
1 IT?

2 A. THAT IS CORRECT.

3 Q. ARE THEY -- IS ONE A GATEWAY, IS ONE A DEL? WHAT  
4 KIND OF COMPUTERS ARE THEY?

5 A. IN THE OFFICE THE TWO COMPUTERS WERE, I BELIEVE,  
6 HEWLITT PACKARDS. THE COMPUTER IN THE BEDROOM WAS A GATEWAY.  
7 THE LAPTOP WAS ALSO A GATEWAY.

8 Q. OKAY. SO WITH REGARD TO THE COMPUTERS IN THE  
9 OFFICE, THE H. P. COMPUTERS, DID YOU DO A SEARCH OF THOSE  
10 COMPUTERS TO DETERMINE HOW MANY STILLS, JPEGs, GIFs, WHATEVER  
11 WERE IN THERE?

12 A. I EXAMINED ALL THE COMPUTERS AND -- FOR A TOTAL FOR  
13 ALL THE COMPUTERS.

14 Q. A TOTAL OF WHAT, SIR?

15 A. OF GRAPHIC IMAGE FILES WHICH WOULD INCLUDE ALL OF  
16 THE ABOVE.

17 Q. OKAY.

18 HOW MANY GRAPHIC IMAGE FILES DID YOU FIND?

19 A. APPROXIMATELY ABOUT A HUNDRED THOUSAND.

20 Q. A HUNDRED THOUSAND? WAS THAT IN ALL THE COMPUTERS?

21 A. YES, SIR.

22 Q. AND DID THAT INCLUDE ONLY NUDES?

23 A. NO, SIR. THAT DID NOT, NO, SIR.

24 Q. OH. HOW MANY NUDES DID IT INCLUDE?

25 A. I WOULD SAY BETWEEN EIGHT- AND 10,000.

26 Q. YOU'RE ESTIMATING THAT, IS THAT CORRECT?

27 A. YES, SIR, I AM.

28 Q. SO THERE WAS A TOTAL OF BETWEEN EIGHT- AND 10,000  
6323  
1 NUDES, AND THAT INCLUDED THE LOOKS LIKE ABOUT 17 STILLS THAT THE

2 JURY JUST SAW; IS THAT RIGHT?

3 A. YES, SIR.

4 Q. SO APPARENTLY CALLED OUT OF A HUNDRED THOUSAND YOU

5 IDENTIFIED DOWN EIGHT- TO 10,000, AND THEN OF THE EIGHT- TO

6 10,000 YOU SPOTTED 14 OR SO THAT THE JURY JUST SAW?

7 A. YES, SIR.

8 Q. AND WITH REGARD TO MPEGs, WERE YOU ABLE TO

9 DETERMINE HOW MANY MPEGs THERE MIGHT HAVE BEEN?

10 A. THERE --

11 Q. I'M SORRY, SIR -- OR AVIS OR ANY VARIATION?

12 A. I DETERMINED THERE WERE SEVERAL HUNDRED OF THE

13 DIGITAL MOVIES.

14 Q. DID YOU LOOK AT THE DIGITAL MOVIES?

15 A. YES, SIR. I WENT THROUGH MOST OF THEM.

16 Q. AND DID YOU NOTICE THAT MOST OF THEM THERE WAS KIND

17 OF A COMMON THEME?

18 A. YES, SIR.

19 Q. THE COMMON THEME SEEMED TO BE INTERCOURSE WITH

20 MATURE WOMAN -- WOMEN, DIDN'T IT?

21 MR. DUSEK: OBJECTION, BEST EVIDENCE.

22 THE COURT: WELL, I'M GOING TO ALLOW IT BECAUSE WE ARE

23 GOING TO NEED TO DISCUSS THIS MATTER.

24 YOU MAY ANSWER THAT, SIR.

25 THE WITNESS: THANK YOU. YES, SIR.

26

27 BY MR. FELDMAN:

28 Q. IN FACT, MOST OF THE MOVIES, VIRTUALLY ALL THE

6324

1 MOVIES WITH A COUPLE OF RARE EXCEPTIONS INVOLVED ADULTS ENGAGED

2 IN VARIOUS CONSENSUAL SEX ACTS, IS THAT RIGHT?

3 MR. CLARKE: OBJECTION, ARGUMENTATIVE AS PHRASED.

4 THE COURT: YOU CAN REPHRASE IT AND I'LL ALLOW IT.

5 SUSTAINED.

6

7 BY MR. FELDMAN:

8 Q. OF THE EIGHT- TO 10,000 -- NO, FIRST OF THE MOVIES.

9 MOST OF THE MOVIES, VIRTUALLY ALL OF THE MOVIES DEPICTED ADULTS

10 ENGAGED IN VARIOUS CONSENSUAL SEX ACTS?

11 A. YES, SIR.

12 Q. WITH REGARD TO THE EIGHT- TO 10,000 STILL IMAGES,

13 JPEGs, GIFs, WHATEVER, THERE WAS A THEME TO THOSE, TOO, RIGHT?

14 A. YES, SIR.

15 Q. AGAIN, WITH REGARD TO THE STILLS, ADULTS, CORRECT?

16 A. MOST OF THEM, YES, SIR.

17 Q. LARGE BREASTED WOMEN, CORRECT?

18 MR. DUSEK: BEST EVIDENCE, YOUR HONOR. LET'S LOOK.

19 THE COURT: OVERRULED. WE ARE GOING TO BE DISCUSSING

20 THIS I SUSPECT AT LENGTH.

21 YOU MAY ANSWER.

22 THE WITNESS: I'M SORRY. COULD YOU REPEAT THE QUESTION,

23 SIR?

24 MR. FELDMAN: SURE. CAN I ASK FOR IT READ BACK PLEASE?

25 (RECORD READ)

26 THE WITNESS: I WOULDN'T BE ABLE TO SAY THE ACTUAL

27 PERCENTAGE. I KNOW THERE WERE A LARGE AMOUNT OF THOSE.

28 ///

6325

1 BY MR. FELDMAN:

2 Q. A LARGE AMOUNT OF THOSE MEANING A LARGE AMOUNT OF  
3 PICTURES OF LARGE BREASTED WOMEN, CORRECT?

4 A. YES, SIR.

5 Q. SIMILAR WITH REGARD TO THE MOVIES, THE MOVIES  
6 CONTAINED A LARGE AMOUNT OF LARGE BREASTED WOMEN; ISN'T THAT  
7 TRUE?

8 A. AGAIN, THERE WERE QUITE A FEW OF THOSE, YES, SIR.

9 Q. YOUR COMPUTER CAPABILITIES ALLOW YOU TO IDENTIFY,  
10 DO THEY NOT, WHETHER OR NOT A FILE HAS BEEN ERASED FROM A HARD  
11 DRIVE?

12 A. YES, SIR.

13 Q. IS THERE SOMETHING CALLED ALLOCATED SPACE?

14 A. YES, SIR.

15 Q. AND IS THERE SOMETHING CALLED UNALLOCATED SPACE?

16 A. YES, SIR.

17 Q. CAN YOU PLEASE TELL THE JURY?

18 A. CERTAINLY.

19 WHEN YOU TURN YOUR COMPUTER ON AND YOU BRING UP,  
20 SAY, A FILE MANAGER PROGRAM, LIKE THE WINDOWS EXPLORER, AND YOU  
21 SEE THE FILES -- YOU SEE THE FILE NAMES, THOSE ARE ALL ALLOCATED  
22 FILES. THOSE ARE FILES THAT YOU CAN LOOK AT, MANIPULATE, SAVE,  
23 VIEW, DO WHATEVER.

24 ONCE YOU DELETED THAT FILE AND YOU NO LONGER SEE  
25 IT, IT GOES TO KIND OF AN AREA OF THE COMPUTER CALLED  
26 UNALLOCATED SPACE, WHICH JUST MEANS THE AREA IT'S IN IS NO

27 LONGER ALLOCATED FOR THAT PARTICULAR FILE. JUST A FANCY WORD

28 FOR SAYING DELETED FILES.

6326

1 Q. BUT YOU HAVE THE ABILITY, DON'T YOU, TO RECOVER

2 DELETED FILES?

3 A. YES, SIR.

4 Q. AND THERE'S A SERIES OF PROGRAMS, OR A SINGULAR

5 PROGRAM OR WHATEVER, THAT YOU HAVE THE TECHNOLOGY TO UTILIZE

6 THAT CAN RECOVER THE PROGRAMS, CORRECT? I'M SORRY, THE DELETED

7 FILES?

8 A. YES, SIR.

9 Q. SO THAT MEANS IF I TAKE MY COMPUTER AND I CAN HIT

10 THE WRONG BUTTON AND DELETE IT, IF I GO TO YOU YOU CAN HELP ME

11 RECOVER THAT FILE, CORRECT?

12 A. YES, SIR. THAT'S CORRECT.

13 Q. ON THE OTHER HAND, IN THIS CASE YOU COULD

14 SPECIFICALLY IDENTIFY, FOR INSTANCE, WHETHER OR NOT OH, AT 4:07

15 IN THE AFTERNOON ON FEBRUARY THE 4TH SOMEBODY WAS ON THE

16 COMPUTER?

17 A. I'M SORRY. THE TWO DON'T EQUATE.

18 Q. I'M ASKING YOU WHETHER OR NOT, IF YOU EXAMINED THE

19 COMPUTERS YOU COULD TELL ME WHETHER OR NOT ON FEBRUARY THE 4TH,

20 WHEN DAVID WESTERFIELD WAS DOWNTOWN SPEAKING TO PAUL REDDEN,

21 WHETHER THERE WAS SOMEONE USING THE COMPUTER.

22 MR. DUSEK: OBJECTION, MISSTATES THE EVIDENCE.

23 THE COURT: OVERRULED. DOES IT HAVE THAT CAPABILITY?

24 YOU MAY ANSWER.

25 THE WITNESS: YES. IT WOULD HAVE CAPABILITY TO SAY A

26 FILE WAS BEING ACCESSED AT THAT TIME.

27

28 ///

6327

1 BY MR. FELDMAN:

2 Q. WERE YOU ACCESSING FILES AT 4:07 P.M., SIR, ON

3 FEBRUARY THE 4TH?

4 MR. CLARKE: OBJECTION, RELEVANCE OR VAGUE.

5 THE COURT: SUSTAINED.

6 REPHRASE IT.

7

8 BY MR. FELDMAN:

9 Q. SPECIFICALLY DIRECTING YOUR ATTENTION TO THE 4TH OF

10 FEBRUARY, SIR, AND MORE SPECIFICALLY DIRECTING YOUR ATTENTION TO

11 THE TIME PERIOD BETWEEN 4:00 P.M. AND 5:00 P.M., WERE YOU

12 UTILIZING ANY OF MR. WESTERFIELD'S COMPUTERS?

13 A. NO, SIR. I WAS AT MY LABORATORY.

14 Q. YOU TOLD US THAT YOU HAD THE CAPABILITY TO IDENTIFY

15 PASSWORDS, IS THAT RIGHT?

16 A. WE WILL LOOK FOR PASSWORDS.

17 Q. YOU DID A SEARCH OF MR. WESTERFIELD'S COMPUTERS FOR

18 THE PURPOSE OF IDENTIFYING PASSWORDS; IS THAT CORRECT, SIR?

19 A. NO, SIR. WHEN I SAID "PASSWORDS" I MEANT IMMEDIATE

20 AREA AROUND THE COMPUTER. MOST USERS HAVE A COMMON HABIT OF

21 BEING WORRIED ABOUT HACKERS SO THEY'LL MAKE THE PASSWORDS, BUT

22 THEY'LL PUT PASSWORDS ON STICKIES. AND SOMETIMES WE HAVE A  
23 COMPUTER MONITOR THAT LOOKS LIKE A DAISY, WITH LITTLE STICKIES  
24 WITH PASSWORDS FOR ALL THEIR THINGS, BUT WE LOOK TO THERE FOR  
25 THE PASSWORDS.

26 Q. YOU JUST INJECTED THE WORD "HACKERS."

27 COULD YOU DEFINE WHAT YOU MEANT BY HACKERS, PLEASE?

28 A. A HACKER IS SOMEBODY WHO WOULD KNOW TO ACCESS A  
6328  
1 COMPUTER WHEN THEY'RE NOT ALLOWED.

2 Q. SO, IN OTHER WORDS, IF I HAD A PHONE LINE HERE,  
3 MAYBE I COULD GET INTO YOUR COMPUTER, OR IF I GOT INTO YOUR  
4 COMPUTER FROM THIS COURTROOM, THAT WOULD BE CALLED HACKING, IS  
5 THAT RIGHT?

6 A. YES, SIR.

7 Q. DID YOU SEE ANY EVIDENCE OF HACKING IN THIS CASE?

8 A. NO, SIR, I DID NOT.

9 Q. SIR, I'D LIKE TO DIRECT YOUR ATTENTION TO THE  
10 SERIES OF PHOTOGRAPHS ON 102C, "D", "E" AND "F".

11 A. YES, SIR.

12 Q. DO "C", "D", "E" AND "F" ACCURATELY DEPICT THE  
13 CONDITION OF MR. WESTERFIELD'S OFFICE AT OR NEAR THE TIME YOU  
14 ARRIVED?

15 A. YES, SIR, IT DOES.

16 Q. WE NOTE IN "D" SOMETHING THAT SAYS "DW." DO YOU  
17 SEE THAT?

18 A. YES, SIR.

19 Q. AND WE ALSO SEE THE "DW" IN "C", IS THAT RIGHT?

20 A. YES, SIR.

21 Q. WE DON'T SEE THE "E", DO WE?

22 A. WE SEE THE EDGE OF IT.

23 Q. DID I PUT THE POINTER CLOSE TO THE EDGE?

24 A. YES, SIR.

25 Q. AND IN "F" WE SEE THE "DW"; IS THAT CORRECT?

26 A. YES, SIR.

27 Q. WHEN YOU OBTAINED THE C. D.S WERE THEY IN PLAIN

28 SIGHT?

6329

1 A. I DIDN'T OBTAIN THE C. D.S, SIR.

2 Q. THE FIRST TIME YOU EVER SAW THE C. D.S OR THE ZIP

3 DISKS TO WHICH YOU MADE REFERENCE IN DIRECT EXAMINATION WERE

4 THEY IN PLAIN SIGHT?

5 A. THEY WERE IN THE HAND OF MR. YOUNGFLESH.

6 Q. I'M SORRY, MR. YOUNGFLESH?

7 A. YES, SIR.

8 Q. AND HE WAS THE F. B. I. AGENT WHO WAS ACCOMPANYING

9 YOU?

10 A. HE WAS THE F. B. I. COMPUTER SPECIALIST, YES, SIR.

11 Q. AND THE TWO OF YOU HAD, I GUESS, BEEN JOINTLY

12 ASSIGNED TO GO DOWN AND PERFORM YOUR PROFESSIONAL DUTIES?

13 A. YES, SIR.

14 Q. DID YOU SEE WHERE MR. YOUNGFLUSH -- YOUNGFLESH

15 OBTAINED THE C. D.S?

16 A. HE INDICATED THAT -- HE INDICATED WHERE HE HAD

17 RECOVERED THEM -- EXCUSE ME.

18 Q. WHERE DID HE INDICATE?

19 A. HE INDICATED IT WAS BEHIND -- SORRY.

20 Q. IF YOU NEED IT, SIR, PLEASE.

21 A. INDICATED HERE.

22 Q. JUST FOR THE RECORD, WHEN YOU SAID HERE --

23 A. I'M SORRY. IN EXHIBIT 102 PICTURE "F" AND THEN

24 THERE IS A 12.

25 Q. ALL RIGHT.

26 A. I'M SORRY.

27 Q. NO PROBLEM.

28 SO WHERE YOU POINTED IN "F", 102F-12, THAT'S WHERE

6330

1 WE'VE BEEN TOLD THE C. D.S WERE, IS THAT WHERE YOU RECALL

2 YOUNGFLESH TELLING YOU THEY WERE?

3 A. HE INDICATED IT WAS IN THAT AREA. I CAN'T TELL YOU

4 EXACTLY WHERE BUT JUST IN THAT GENERAL AREA.

5 Q. SO YOU DID NOT -- YOU'RE NOT THE PERSON RESPONSIBLE

6 FOR THE SEIZURE OF THOSE C. D.S, IS THAT RIGHT, SIR?

7 A. THAT IS CORRECT.

8 Q. BY THE TIME YOU GOT TO THE C. D.S AND THE ZIPS,

9 THEY HAD ALREADY BEEN TAKEN, IS THAT RIGHT?

10 A. THEY HAD ALREADY BEEN PULLED OUT, YES, SIR.

11 Q. NOW, IT MATTERS, DOESN'T IT, WHO IS THE PERSON THAT

12 MADE THE DOWNLOADS THAT ULTIMATELY GOT TO -- I'M SORRY, I JUST

13 INJECTED ANOTHER WORD. LET ME BACK UP.

14 DO YOU UNDERSTAND THE TERM "DOWNLOAD"?

15 A. YES, SIR.

16 Q. PLEASE TELL ME WHAT DOES THAT MEAN?

17 A. DOWNLOAD IS A TERM -- IT'S A TERM THAT MEANS THE

18 TRANSFER OF A FILE FROM ONE LOCATION DOWN TO WHATEVER COMPUTER

19 YOU'RE AT.

20 Q. SO HYPOTHETICALLY I'M ON THE INTERNET.

21 A. YES, SIR.

22 Q. I TYPE WWW DOT PICTURES DOT COM OR WHATEVER AND A

23 PICTURE COMES UP AND I CAN MOVE THAT PICTURE TO MY COMPUTER; IS

24 THAT CORRECT?

25 A. YES, SIR.

26 Q. THAT PROCESS IS CALLED DOWNLOADING?

27 A. YES, SIR.

28 Q. CAN YOU IDENTIFY THE PERSON WHO DOWNLOADED ANY OF

6331

1 THE FILES THAT WERE JUST SHOWN TO YOU?

2 A. NO, SIR.

3 Q. CAN LOOK AT -- DO YOU HAVE THE CAPABILITY TO LOOK

4 INTO THE COMPUTER TO IDENTIFY THE PERSON THAT DOWNLOADED THE

5 PARTICULAR PHOTO?

6 A. NO, SIR.

7 Q. CAN YOU TELL ME WHEN THE PHOTOS THAT WERE SHOWN TO

8 YOU ON DIRECT EXAMINATION WERE LAST ACCESSED?

9 A. THERE ARE DATES THAT ARE ASSOCIATED WITH THE LAST

10 ACCESS DATES. HOWEVER, THERE ARE SEVERAL SITUATIONS WHERE

11 THEY'RE NOT -- IT'S NOT ALWAYS ACCURATE.

12 Q. FIRST OF ALL, SIR, WITH REGARD TO C. D.S, THAT  
13 DOWNLOAD CONCEPT THAT I JUST GAVE YOU THAT WE JUST TALKED ABOUT,  
14 WHEN YOU DOWNLOAD SOMETHING TO A C. D. THE C. D. WRITES A DATE,  
15 IS THAT --

16 A. THAT IS CORRECT, SIR.

17 Q. OR THE COMPUTER WRITES A DATE TO THE C. D., IS THAT  
18 RIGHT?

19 A. YES, SIR.

20 Q. THAT DATE ISN'T CHANGEABLE, IS IT?

21 A. THAT DATE IS NOT CHANGEABLE.

22 Q. SO WITH REGARD TO C. D.S, YOU CANNOT TELL WHEN A C.  
23 D. WAS LAST ACCESSED, IS THAT RIGHT?

24 A. THAT IS CORRECT.

25 Q. HOWEVER, WITH REGARD TO ZIP DISKS, IT'S A DIFFERENT  
26 CIRCUMSTANCE, ISN'T IT?

27 A. IT DEPENDS. ZIP DISKS CAN BE WRITE PROTECTED AND  
28 YOU CAN LOCK THEM.

6332

1 Q. WELL, WITH REGARD TO THE ZIP DISKS YOU SAW, WERE  
2 THEY WRITE PROTECTED OR LOCKED?

3 A. AT THE TIME WE GOT THEM, NO, SIR.

4 Q. SO THEREFORE, IT'S THE CASE, IS IT NOT, THAT YOU  
5 COULD OR DO HAVE THE CAPABILITY TO IDENTIFY DATE OF LAST ACCESS  
6 OF ANY OF THE FILES THAT CAME OFF THE ZIP DISKS; IS THAT  
7 CORRECT?

8 A. YES, SIR.

9 Q. DID YOU CHECK?

10 A. YES, WE DID.

11 Q. ARE YOU FAMILIAR WITH AN AREA OF THE COMPUTER

12 CALLED "TEMPORARY INTERNET FILES"?

13 A. YES, SIR, I AM.

14 Q. PLEASE TELL US WHAT ARE "TEMPORARY INTERNET FILES"?

15 A. THE TEMPORARY INTERNET FILES, BASICALLY THEY'RE

16 DESIGNED TO MAKE THE VIEWING OF INTERNET WEB PAGES MORE

17 EFFICIENT. FOR EXAMPLE, YOU GET ON TO THE COMPUTER, YOU LOG ON

18 TO CNN. THE INTERNET OR CNN'S COMPUTER WILL SEND THAT FILE OR

19 THAT PAGE TO YOU. AS THEY SEND YOU THE PAGE IT ACTUALLY SENDS

20 IT IN PIECES, INCLUDING ALL THE PICTURES ARE SENT TO YOUR

21 COMPUTER. ONCE THEY GET ON TO YOUR COMPUTER, THEY'RE THEN

22 REASSEMBLED ON YOUR COMPUTER. THERE IS A TEMPORARY -- BEFORE

23 THEY CAN BE PUT BACK TOGETHER THEY HAVE TO HAVE A TEMPORARY

24 STORAGE PLACE WHERE THEY CAN RESIDE ON YOUR COMPUTER TO BE PUT

25 KIND OF BACK TOGETHER. THAT'S CALLED THE TEMPORARY INTERNET

26 FILES. SO ALL THOSE FILES WILL COME IN YOUR COMPUTER, SIT IN

27 THE TEMPORARY INTERNET FILES. YOU'LL VIEW THEM, AND THEN ONCE

28 YOU GO ON TO THE NEXT PAGE, IF YOU EVER HAD AN EXAMPLE WHERE

6333

1 YOU'VE GONE TO THE SAME PAGE TWICE, SAY, IN THE SAME DAY, AND

2 YOU NOTICE THE SECOND TIME YOU GO TO IT IT COMES IN THAT MUCH --

3 IT LOADS UP ALMOST IMMEDIATELY, IT'S BECAUSE ALL THOSE FILES ARE

4 STILL ON YOUR COMPUTER IN THAT TEMPORARY INTERNET FILE AND IT

5 JUST MAKES IT MUCH MORE EFFICIENT.

6 Q. SIR, DIRECTING YOUR ATTENTION TO 4:47 P.M. ON

7 FEBRUARY THE 4TH, 2002, WERE YOU UTILIZING ANY OF THE COMPUTERS  
8 IN THE WESTERFIELD HOUSE TO DO ANY SURFING?

9 A. I WAS NOT SUMMONED ON FEBRUARY 4TH -- THAT WOULD BE  
10 A MONDAY.

11 Q. YES.

12 A. I WAS NOT SUMMONED TO THE SCENE UNTIL 9:00 P.M.

13 Q. I'D LIKE TO HAVE MARKED AS TWO EXHIBITS, THEY CAN  
14 BE "A" AND "B", HOWEVER THE COURT WISHES.

15 THE COURT: STAPLE THEM TOGETHER. WE'LL MAKE THEM "A"  
16 AND "B".

17 MR. FELDMAN: THANK YOU, YOUR HONOR.

18 THE COURT: 142.

19 (MARKED FOR ID: = TRIAL EX. 142A&B, SCREEN CAPTURE)

20

21 BY MR. FELDMAN:

22 Q. ARE YOU FAMILIAR WITH THE TERM "SCREEN CAPTURE"?

23 A. YES, SIR, I AM.

24 Q. COULD YOU PLEASE TELL THE JURY WHAT IS A SCREEN  
25 CAPTURE?

26 A. A SCREEN CAPTURE IS A METHOD YOU CAN TAKE, LIKE A  
27 SNAPSHOT OR PICTURE OF THE COMPUTER SCREEN.

28 Q. I'D LIKE TO DIRECT YOUR ATTENTION TO WHAT'S BEEN  
6334  
1 MARKED 142A AND 142B.

2 SIR, CAN YOU TELL ME, DOES THAT EXHIBIT, 142A IS

3 THE FIRST PAGE, DOES THAT APPEAR TO BE A SCREEN CAPTURE?

4 A. YES, SIR, IT DOES.

5 Q. AND CAN YOU TELL ME IS THERE -- WHEN -- I USED THE

6 WORD SURFING A MOMENT AGO. IS THERE SOMETHING CALLED -- WHEN I

7 USE THE TERM SURFING, DO YOU UNDERSTAND THERE'S SOMETHING CALLED

8 INTERNET SURFING?

9 A. YES, I DO.

10 Q. WHAT DOES THAT MEAN?

11 A. IT'S A TERM THAT APPLIES TO PEOPLE OR THE ACT OF

12 GOING ON THE INTERNET AND LOOKING AROUND THE INTERNET.

13 Q. GOING FROM SITE TO SITE?

14 A. YES, SIR.

15 Q. IS THERE SOMETHING CALLED PORN SURFING?

16 A. I HAVEN'T HEARD THE TERM BEFORE BUT I CAN IMAGINE

17 WHAT ITS NOTATION IS.

18 Q. SPECIFICALLY DIRECTING YOUR ATTENTION TO "A", SIR,

19 YOU TOLD ME THIS APPEARS TO BE A SCREEN CAPTURE.

20 DO YOU SEE AN ADDRESS?

21 A. I DON'T SEE ADDRESS. I SEE A PATH.

22 Q. I USE THE WORD "ADDRESS" AND YOU JUST TOLD ME YOU

23 SAW A "PATH." DO YOU -- IS THERE, IN THE SURFING AREA, THE

24 COMPUTER SURFING AREA SOMETHING CALLED AN ADDRESS?

25 A. YES.

26 Q. AND WHAT DOES THAT MEAN?

27 A. THE ADDRESS -- EXCUSE ME -- IS IF YOU GO TO --

28 AGAIN, I'LL USE CNN. IF YOU GO TO CNN DOT COM, THE ADDRESS IS

6335

1 WWW DOT CNN DOT COM, THAT'S THE ADDRESS.

2 Q. AND YOU TOLD ME THERE'S SOMETHING CALLED A PATH, IS

3 THAT RIGHT?

4 A. YES, SIR.

5 Q. PLEASE TELL US WHAT'S A PATH.

6 A. A PATH INDICATES A LOCATION ON THE COMPUTER WHERE A

7 DOCUMENT OR FILE IS.

8 Q. DIRECTING YOUR ATTENTION TO 142A, THIS APPEARS TO

9 BE A SCREEN CAPTURE THAT INDICATES IT WAS LAST WRITTEN FEBRUARY

10 THE 4TH, 2002 AT 4:47 P.M. DOES IT NOT?

11 A. YES, SIR.

12 Q. AND IT INDICATES THAT APPARENTLY A JPEG WAS

13 DOWNLOADED; IS THAT CORRECT?

14 A. IT WAS NOT DOWNLOADED, SIR. IT WAS VIEWED.

15 Q. OKAY.

16 IN OTHER WORDS, THE COMPUTER THAT WAS IN

17 WESTERFIELD'S OFFICE AT 4:47 P.M. ON FEBRUARY THE 4TH, 2002,

18 SOMEBODY VIEWED SOMETHING?

19 A. YES, SIR.

20 MR. CLARKE: OBJECTION, ASSUMES FACTS NOT IN EVIDENCE.

21 THE COURT: SUSTAINED. NO FOUNDATION.

22 MR. CLARKE: MOVE TO STRIKE THE ANSWER.

23 THE COURT: THE JURY'S TO DISREGARD THE LAST ANSWER TO

24 THE LAST QUESTION.

25

26 BY MR. FELDMAN:

27 Q. THE SCREEN CAPTURE ACCURATELY VIEWS THAT ACTIVITY

28 AN INDIVIDUAL IS ENGAGED IN WHILE UTILIZING THE COMPUTER; IS  
6336

1 THAT CORRECT?

2 A. YES, SIR.

3 Q. THIS SCREEN CAPTURE THAT I'M SHOWING YOU THAT'S "A"

4 DOES SPECIFICALLY DEPICT AN ADDRESS, DOES IT NOT? I'M SORRY --

5 A PATH?

6 A. THANK YOU. YES, SIR.

7 Q. AND WHAT'S THE PATH?

8 A. THE PATH IS 001 BACK SLASH WINDOWS BACK SLASH

9 TEMPORARY INTERNET FILES BACK SLASH CONTENT PERIOD CAPITAL IE5

10 BACK SLASH K1U7C9EF BACK SLASH TEEN DREAM.

11 Q. DIRECTING YOUR ATTENTION TO 142B, AGAIN WE SEE AN

12 INDICATION OF A FILE LAST ACCESSED FEBRUARY 4, 2002 AT 4:47

13 P.M., IS THAT RIGHT?

14 A. YES, SIR.

15 Q. CAN YOU TELL ME PLEASE WHAT'S THE PATH THAT'S

16 REFLECTED?

17 A. YES, I CAN. IT'S 001 BACK SLASH C BACK SLASH

18 WINDOWS BACK SLASH TEMPORARY INTERNET FILES BACK SLASH CONTENT

19 PERIOD IE5 BACK SLASH G5ENGXQB BACK SLASH LESBIAN, AND THEN BO,

20 I CAN'T READ THE REST OF IT.

21 Q. CAN YOU TELL ME WHICH COMPUTER THIS SCREEN CAPTURE

22 CAME FROM?

23 A. NO, SIR, I CAN'T.

24 Q. DIDN'T YOU IN YOUR INVESTIGATION ATTEMPT TO

25 DETERMINE WHAT, IF ANY, ACTIVITIES WERE BEING ENGAGED IN ON  
26 THOSE COMPUTERS AT TIMES WHEN MR. WESTERFIELD COULDN'T HAVE BEEN  
27 AROUND?

28 A. THAT WAS NOT ONE OF THE REQUESTS, SIR.

6337

1 Q. SO, IT IS THE CASE THAT YOU CANNOT TELL THE JURY

2 WHETHER OR NOT ANY OF THOSE DOWNLOADS THAT MR. CLARKE SHOWED YOU  
3 WERE CREATED BY MR. WESTERFIELD?

4 MR. CLARKE: EXCUSE ME. ASSUMES FACTS NOT IN EVIDENCE.

5 THE COURT: OVERRULED.

6 YOU MAY ANSWER.

7 THE WITNESS: NO, SIR.

8

9 BY MR. FELDMAN:

10 Q. WHEN YOU SAY NO, YOU MEAN TO AGREE WITH ME, YOU

11 CANNOT TELL US WHO PRODUCED THOSE IMAGES, CORRECT?

12 A. CORRECT.

13 Q. WITH REGARD TO MR. YOUNGFLESH, YOU TOLD US THAT

14 WHEN YOU FIRST SAW THE C. D.S AND THE ZIP DISKS THEY WERE IN HIS

15 HAND, IS THAT RIGHT?

16 A. YES, SIR.

17 Q. WERE THEY IN ANY KIND OF AN ENVELOPE?

18 A. NO, SIR.

19 Q. WITH REGARD TO THE C. D.S, DO THEY COME WITH A

20 PLASTIC CASE COVERING?

21 A. YES. SOME DO, SOME -- YES, SIR.

22 Q. SPECIFICALLY WITH REGARD TO THOSE DEPICTED IN 102?

23 A. I BELIEVE ONE DID AND TWO OTHERS DID NOT.

24 Q. DID YOU TOUCH EITHER ONE OF THOSE C. D.S?

25 A. I DON'T RECALL.

26 Q. DO YOU RECALL WHETHER MR. YOUNGFLESH -- MR.

27 YOUNGFLESH MUST HAVE TOUCHED THEM, RIGHT, BECAUSE HE HAD THEM IN

28 HIS HAND. IS THAT A FAIR STATEMENT?

6338

1 A. YES, SIR.

2 Q. DID YOU MENTION TO SERGEANT HOLMES THAT YOU HAD

3 LOCATED EVIDENCE THAT MIGHT BE OF SOME BENEFIT IN THE CASE?

4 A. YES, SIR.

5 Q. WAS THERE ANY COMMUNICATION BETWEEN YOU AND HE

6 ABOUT MAYBE FINGERPRINTING THE DISKS TO DETERMINE WHO LAST

7 TOUCHED 'EM?

8 A. NO, SIR.

9 Q. THE TIME YOU COMMUNICATED TO SERGEANT HOLMES THAT

10 YOU MIGHT HAVE EVIDENTIARY DISKS, THAT OCCURRED AFTER YOU HAD

11 DONE SOME SCREENINGS, IS THAT RIGHT?

12 A. YES, SIR.

13 Q. SO YOU KNEW THAT AT LEAST IN YOUR MIND THERE MIGHT

14 BE IMAGES OF -- I THINK YOU CALLED IT QUESTIONABLE IMAGES; IS

15 THAT RIGHT?

16 A. YES, SIR.

17 Q. AND YOU COMMUNICATED THAT TO SERGEANT HOLMES?

18 A. YES, SIR.

19 Q. AND NO EFFORT WAS MADE TO PRESERVE THE EVIDENCE,

20 FOR INSTANCE, FOR FINGERPRINT PURPOSES, CORRECT?

21 A. WE WERE HANDLING THEM BY THE EDGES.

22 Q. FOR HOW LONG DID YOU HANDLE 'EM BY THE EDGES, SIR?

23 A. FOR THE -- WE ONLY HAVE TO HANDLE THEM VERY

24 MINIMALLY DURING THE PROCESS, WHICH IS TAKING THEM, PUTTING THEM

25 INTO THE C. D. TRAY, VIEWING THEM, TAKING THEM OUT AND THEN

26 PUTTING THEM INSIDE A BAG.

27 Q. DID YOU EVER HEAR OF JOIN FOR FREE DOT COM?

28 A. NO, SIR.

6339

1 Q. DID YOU EVER HEAR OF PASSWORDS AT MP3 DOT COM?

2 A. NO, SIR.

3 Q. WITH REGARD TO WHAT WE SAW IN THE COURTROOM, DID

4 YOU CHECK THE HARD DRIVES OF THE COMPUTERS TO DETERMINE WHETHER

5 OR NOT ANY OF THE IMAGES OR MPEGs OR JPEGs HAD BEEN IN ANY OF

6 THE COMPUTERS?

7 A. YES, SIR.

8 Q. CAN YOU TELL ME, DID YOU NOTICE WHETHER OR NOT ANY

9 OF THE IMAGES THAT WE SAW ON DIRECT HAD BEEN IN ANY OF THE

10 COMPUTERS?

11 A. YES, SIR.

12 Q. PLEASE.

13 A. OKAY. THERE WERE SEVERAL -- I THINK THERE WERE

14 FIVE OF THOSE IMAGES LOCATED ON THE COMPUTER IN THE ONE BEDROOM.

15 Q. I'M SORRY. WHICH BEDROOM?

16 A. WELL, WE ONLY FOUND COMPUTERS IN THE OFFICE, AND

17 THEN WE'VE BEEN USING THE TERM "BEDROOM" TO DENOTE -- BEDROOM AT  
18 THE TOP, IF YOU WOULD, THE TOP OF THE STAIRS TO THE LEFT THERE'S  
19 THE FIRST BEDROOM.

20 Q. SORRY, SIR. JUST A MINUTE PLEASE. EXCUSE ME.

21 (PAUSE)

22 Q. DIRECTING YOUR ATTENTION TO WHAT'S BEEN PREVIOUSLY  
23 MARKED 93, IS THIS THE BEDROOM AT THE TOP OF THE STAIRS TO WHICH  
24 YOU MAKE REFERENCE?

25 A. YES, SIR, IT IS.

26 Q. AND DIRECTING YOUR ATTENTION TO PHOTOGRAPH "C", IS  
27 THAT THE COMPUTER FROM WHICH YOU DOWNLOADED ANY OF THE IMAGES?

28 A. YES, SIR.

6340

1 Q. WHICH IMAGES?

2 A. IF I MAY REFER TO MY REPORT, SIR.

3 Q. I'M SORRY. DO YOU HAVE AN INDEPENDENT  
4 RECOLLECTION?

5 A. INDEPENDENT RECOLLECTION, NO, SIR.

6 Q. WOULD REFERRING TO YOUR REPORT REFRESH YOUR  
7 RECOLLECTION?

8 A. YES, SIR, IT WOULD.

9 Q. COULD YOU PLEASE DO SO AND TELL US WHERE YOU'RE  
10 MAKING YOUR REFERENCE?

11 A. OKAY.

12 A. I DO NOT HAVE THE REPORT WITH ME HERE, SIR.

13 Q. WOULD LOOKING AT THIS PERHAPS HELP YOU OUT?

14 A. NO, SIR, IT WOULD NOT.

15 Q. HOW ABOUT THIS?

16 A. NO, SIR.

17 Q. WHAT'S THE DATE OF THE REPORT YOU'RE LOOKING FOR,

18 SIR?

19 A. THE REPORT ACTUALLY I GENERATED SEVERAL WEEKS AGO,

20 AND I DON'T HAVE THE DATE ON IT, SIR.

21 Q. WELL, YOU RECENTLY PREPARED A REPORT; IS THAT

22 CORRECT?

23 A. YES, SIR.

24 Q. YOU PREPARED THE REPORT JUNE THE 25TH, 2002, IS

25 THAT RIGHT?

26 A. YES, SIR.

27 Q. I'M JUST HANDING YOU A PIECE OF PAPER.

28 SIR, IS THAT THE COPY OF THE REPORT THAT YOU

6341

1 PREPARED 25 JUNE?

2 A. YES, SIR, IT IS.

3 Q. TODAY'S THE 25TH OF JUNE, ISN'T IT?

4 A. YES, SIR, IT IS.

5 Q. THE REPORT INDICATES THAT MR. CLARKE REQUESTED THAT

6 YOU SEARCH THE SUBMITTED COMPUTER EVIDENCE FOR CERTAIN

7 INFORMATION; ISN'T THAT CORRECT?

8 A. YES, SIR.

9 Q. HE SPECIFICALLY REQUESTED THAT YOU ATTEMPT TO

10 DETERMINE THE DATES THE LISTED FILES WERE DOWNLOADED; IS THAT

11 CORRECT?

12 A. YES, SIR.

13 Q. THE LISTED FILES REFER TO THE FILES THAT WE JUST  
14 SAW, IS THAT RIGHT?

15 A. YES, SIR.

16 Q. BUT IT DIDN'T ASK TO FIND OUT WHO DOWNLOADED THE  
17 FILES, DID IT?

18 A. NO, SIR, IT DID NOT.

19 Q. AND YOU HAVE THE CAPABILITY OF DETERMINING  
20 VIRTUALLY EVERY KEY STROKE, DON'T YOU?

21 A. NO, NOT EVERY KEY STROKE.

22 Q. VIRTUALLY EVERY KEY STROKE?

23 A. NO, NOT EVERY KEY STROKE.

24 Q. IF I GO ON A COMPUTER AND I DO SURFING CAN YOU  
25 BACKTRACK WHAT I'M DOING?

26 A. I CAN BACKTRACK SOME OF WHAT THE COMPUTER IS DOING  
27 BUT NOT ALL OF IT.

28 Q. ARE YOU FAMILIAR WITH A PROGRAM CALLED ENCASE?  
6342

1 A. YES, SIR, I AM.

2 Q. WHAT IS IT?

3 A. IT'S A FORENSIC UTILITY THAT ALLOWS US TO LOOK AT  
4 THE CONTENTS OF A COMPUTER HARD DRIVE AND DO OUR ANALYSIS.

5 Q. DID YOU USE ENCASE IN THIS CASE?

6 A. YES, SIR, I DID.

7 Q. AND DOESN'T ENCASE PERMIT YOU THE OPTION TO  
8 PRINTOUT SCREEN CAPTURES OF PARTICULAR EVENTS IN THE COMPUTER?

9 A. YES, SIR, IT DOES.

10 Q. DID YOU UTILIZE ENCASE FOR THE PURPOSE OF PRINTING  
11 OUT ANY SCREEN CAPTURES?

12 A. NO, SIR.

13 Q. DID YOU USE ENCASE FOR THE PURPOSE OF DETERMINING  
14 WHO WAS USING THE COMPUTER?

15 A. UNFORTUNATELY, IT DOESN'T TELL US WHO WAS AT THE  
16 COMPUTER TERMINAL TYPING.

17 Q. WELL, ISN'T THERE SOMETHING CALLED E-MAIL?

18 A. THERE IS E-MAIL.

19 Q. AND DOESN'T CERTAIN SYSTEMS, ON-LINE SYSTEMS PERMIT  
20 MORE THAN ONE E-MAIL ADDRESS?

21 A. YES, SIR.

22 Q. AND IF I HAVE A COMPUTER AND I HAVE A CHILD OR  
23 CHILDREN, CAN'T I ASSIGN MYSELF A PARTICULAR E-MAIL ADDRESS AND  
24 MY CHILD OR CHILDREN ANOTHER E-MAIL ADDRESS?

25 A. YES, SIR.

26 Q. AND CAN'T YOU, THE FORENSIC EXAMINER, THEN LOOK AT  
27 MY COMPUTER AND DETERMINE WHETHER I SIGNED IN UNDER MY NAME OR  
28 ONE OF MY CHILDREN MIGHT HAVE SIGNED IN?

6343

1 A. I CAN'T TELL IF YOU SIGNED IN OR SOMEBODY ELSE

2 SIGNED IN AS YOU. ALL I CAN TELL IS IF A ACCOUNT WAS ACCESSED  
3 POSSIBLY.

4 Q. IN OTHER WORDS, YOU CAN TELL --

5 MR. CLARKE: EXCUSE ME. I DON'T BELIEVE THE WITNESS WAS

6 ALLOWED TO FINISH HIS ANSWER.

7 THE COURT: FINISH YOUR ANSWER, PLEASE.

8 THE WITNESS: YOU CAN'T TELL WHO WAS AT THE SCREEN

9 TYPING, WHO WAS ACCESSING THE FILE OR ACCESSING THE E-MAIL. ALL

10 THAT CAN BE SOMETIMES GLEANED IS IF IT WAS ACCESSED.

11

12 BY MR. FELDMAN:

13 Q. WELL, YOU CAN CHECK THE E-MAIL FILES, CAN'T YOU?

14 A. YOU CAN.

15 Q. AND IF THE E-MAIL'S IN ONE NAME YOU CAN INFER THAT

16 THAT PERSON -- YOU CAN AT LEAST DRAW THAT INFERENCE, CAN'T

17 YOU -- THAT THAT PERSON HAD ACCESS TO THAT E-MAIL AT THAT

18 PARTICULAR TIME?

19 A. I CAN INFER THAT E-MAIL IS ACCESSED AT THAT

20 PARTICULAR TIME.

21 Q. WITH REGARD TO A COMPUTER, DOES IT RECORD, FOR

22 INSTANCE, WHEN THE E-MAIL WAS SENT OR RECEIVED?

23 A. SOME OF THE PROGRAMS DO, YES.

24 Q. IN THE SPECIFIC INSTANCE OF THE COMPUTERS THAT YOU

25 EVALUATED IN CONNECTION WITH THE CASE OF PEOPLE VERSUS

26 WESTERFIELD, COULD YOU ASCERTAIN WHETHER OR NOT THERE WERE OR

27 WAS E-MAIL SYSTEMS?

28 A. THERE WERE E-MAIL SYSTEMS.

6344

1 Q. WHAT KIND OF SYSTEMS WERE THE E-MAIL?

2 A. I BELIEVE THERE WAS OUTLOOK AND I BELIEVE THERE WAS

3 SOME INTERNET BASED WEB MAIL.

4 Q. WHAT'S INTERNET BASED WEB MAIL?

5 A. INTERNET OR SERVER BASED E-MAIL IS LIKE HOT MAIL  
6 DOT COM OR YAHOO. YOU GET ON TO THE COMPUTER, YOU GO TO THAT  
7 PARTICULAR E-MAIL SITE AND DOWNLOAD THE E-MAILS.

8 Q. SIR, DIRECTING YOUR ATTENTION TO FEBRUARY THE 4TH,  
9 2002, AT APPROXIMATELY 6:51 P.M., DID YOU HAVE OCCASION TO  
10 UTILIZE ANY OF THE COMPUTERS IN DAVID WESTERFIELD'S HOUSE?

11 A. NO, SIR, I DID NOT.

12 (MARKED FOR ID: = TRIAL EX. 143, SCREEN CAPTURE)

13 MR. FELDMAN: COUNSEL.

14 I'D ASK TO HAVE MARKED AS COURT'S NEXT IN ORDER, OR  
15 EVEN "C" IN THE SEQUENCE.

16 THE COURT: IT'S 143.

17 MR. FELDMAN: THANK YOU.

18 Q. YOU JUST TOLD ME I THINK THAT THERE WERE WEB BASED  
19 E-MAILS; IS THAT CORRECT?

20 A. I BELIEVE THERE WERE, SIR.

21 Q. AND HOT MAIL IS SUCH A WEB BASED E-MAIL ACCOUNT; IS  
22 THAT CORRECT?

23 A. YES, SIR.

24 Q. I'D LIKE TO DIRECT YOUR ATTENTION TO COURT EXHIBIT  
25 143. CAN YOU TELL ME, SIR, DOES THAT APPEAR TO BE A SCREEN  
26 CAPTURE OF AN E-MAIL EITHER SENT OR RECEIVED ON FEBRUARY THE  
27 4TH, 2002, AT 1851, 6:51 P.M.?

28 A. YES, SIR.

6345

1 Q. AND IT'S SENT FROM SOMEBODY; IS THAT CORRECT?

2 A. YES, IT IS.

3 Q. WHO?

4 A. IT'S SENT FROM EDITOR AT NEWSLETTER DOT PINK FOR

5 FREE DOT COM.

6 Q. WHO'S IT SENT TO?

7 A. DNWEST AT HOTMAIL DOT COM.

8 Q. DNWEST AT HOTMAIL DOT COM, IS THAT WHAT YOU SAID,

9 SIR?

10 A. YES, SIR.

11 Q. AND WE SEE -- IS THERE AN ADDRESS LISTED ANYWHERE

12 OR IS THERE ANY REFERENCE TO, FOR INSTANCE, A FEATURED SITE?

13 A. YES, SIR, THERE IS.

14 Q. WHAT'S THE FEATURED SITE?

15 A. THE ADDRESS IS HTTP COMMA -- OR COLON, EXCUSE ME,

16 FORWARD SLASH FORWARD SLASH WWW DOT PINK FOR FREE DOT COM

17 FORWARD SLASH WENDY WET FORWARD SLASH 2002 FORWARD SLASH

18 FEBRUARY FORWARD SLASH 0204 FORWARD SLASH 0204 DOT HTML.

19 Q. WHAT I'M SHOWING YOU AS 143 APPEARS TO BE A SCREEN

20 CAPTURE OF AN E-MAIL THAT WAS SENT FROM A COMPUTER; IS THAT

21 CORRECT?

22 A. YES, SIR.

23 Q. YOU DID NOT CHECK -- WELL, CAN YOU TELL ME WHETHER

24 IT CAME FROM THE COMPUTER THAT'S DEPICTED IN 93?

25 A. NO, SIR, I CANNOT.

26 Q. CAN YOU TELL ME WHETHER IT CAME FROM EITHER OF THE

27 COMPUTERS THAT ARE DEPICTED IN 102?

28 A. NO, SIR, I CAN NOT.

6346

1 Q. WHY NOT?

2 A. THERE IS NO IDENTIFYING INFORMATION ON THE

3 NEWSLETTER OR ON THE E-MAIL.

4 Q. WELL, ISN'T THAT -- ISN'T THAT PAGE THAT I JUST

5 SHOWED YOU, THIS 143, ISN'T THAT SOMETHING THAT YOU'RE

6 ACCUSTOMED TO SEEING BY VIRTUE OF YOUR USE OF ENCASE?

7 A. THE AMOUNT OF DATA ON A -- ON THE COMPUTER EVIDENCE

8 THAT WE HAD TO GO THROUGH, THERE IS NO WAY THAT WE CAN LOOK AT

9 EACH AND EVERY FILE. IF WE WERE TO PRINT OUT EVERYTHING OFF

10 THOSE COMPUTERS WE'D HAVE A STACK OF PAPER TALLER THAN THE

11 NATIONAL MONUMENT. THERE'S JUST NO WAY FOR US TO BE ABLE TO SAY

12 WITH EVERY SINGLE FILE EVERY KIND OF PAGE WAS ON THE COMPUTER.

13 Q. I'M SORRY. I'M A LITTLE BIT CONFUSED.

14 ARE YOU SAYING THAT YOU CAN'T PRINT OUT A LIST OF

15 THE FILES THAT APPEAR IN THE COMPUTERS IN THIS CASE BECAUSE THE

16 PAPER WOULD BE BIGGER THAN THE WASHINGTON MONUMENT?

17 A. I'M TELLING YOU THAT THE FILES ON THE COMPUTERS, IF

18 WE TOOK ALL THE FILES OUT, PRINTED THEM OUT, WOULD BE LARGER

19 THAN THE WASHINGTON MONUMENT, YES, SIR.

20 Q. IN THIS CASE?

21 A. IN THIS CASE.

22 Q. WELL, HOW ABOUT A -- IS THERE SOMETHING CALLED A

23 "DIRECTORY STRUCTURE"?

24 A. THERE IS A DIRECTORY STRUCTURE.

25 Q. WHAT'S A "DIRECTORY STRUCTURE"?

26 A. DIRECTORY STRUCTURE IS A LIST OF ALL THE FOLDERS OR  
27 DIRECTORIES ON THE COMPUTER.

28 Q. DID YOU PRINT OUT OR LOOK AT THE DIRECTORY

6347

1 STRUCTURES OF ANY OF THE COMPUTERS, SIR?

2 A. I LOOKED AT SOME OF THE DIRECTORY STRUCTURES, YES,

3 SIR.

4 Q. YOU NOTICED IN ONE OF THE DIRECTORY STRUCTURES, I

5 THINK YOU TOLD US SOMETHING ABOUT CARTOONS, IS THAT RIGHT?

6 A. YES, SIR.

7 Q. THAT INCLUDED, I DON'T KNOW, THE SIMPSONS, STAR

8 TREK, SUPERMAN, RIGHT?

9 A. AMONG OTHERS, YES.

10 Q. THERE WERE DIRECTORIES THAT ARE CALLED BABES AND

11 CELEBS, IS THAT RIGHT?

12 A. YES, SIR.

13 Q. MOVIES?

14 A. YES, SIR.

15 Q. NEIL'S MUSIC?

16 A. COULD HAVE BEEN, YES, SIR.

17 Q. I THINK YOU TOLD US ON DIRECT EXAMINATION, OR MAYBE

18 AT THE BEGINNING OF MY CROSS-EXAMINATION, THAT THERE WAS

19 SOMEWHERE AROUND A HUNDRED THOUSAND PICTURES AND SOMEHOW THAT

20 GOT WHITTLED DOWN IN MY MEMORY AND WENT TO EIGHT- TO 10,000, IS

21 THAT RIGHT?

22 A. YES, SIR.

23 Q. DID YOU STORE OR PUT SOMEPLACE THE EIGHT- TO

24 10,000?

25 A. YES, SIR.

26 Q. WHERE?

27 A. RIGHT NOW THEY'RE ON A HARD DRIVE, AND ALSO I DID A

28 PRINT OUT AS WELL.

6348

1 Q. WHEN YOU SAY PRINT OUT YOU PRINTED OUT ALL THE

2 IMAGES, ALL THE EIGHT- TO 10,000 IMAGES?

3 A. I BELIEVE I PRINTED OUT MOST OF THEM.

4 Q. GOT 'EM WITH YOU?

5 A. WITH ME, NO, SIR.

6 Q. PARDON ME?

7 A. NO, SIR.

8 Q. WHEN YOU PRINTED 'EM OUT DID YOU PRINT THEM OUT IN

9 COMPLETE EIGHT BY TEN SIZE OR DID YOU PRINT 'EM OUT IN -- I

10 WOULD CALL THEM THUMB NAILS BUT I KNOW THAT THAT'S -- I DON'T

11 KNOW WHETHER YOU USE THE TERM SAME WAY AS I DO?

12 A. I PRINTED OUT SEVERAL PER PAGE.

13 Q. WHEN YOU SAY YOU PRINTED OUT SEVERAL PER PAGE,

14 COULD YOU PLEASE TELL THE JURY WHAT YOU MEAN?

15 A. THERE WERE SEVERAL PICTURES ON EACH PAGE AND I

16 PRINTED THEM OUT THAT WAY.

17 Q. ALL RIGHT. SO DOES THAT MEAN YOUR PRINTER OR

18 WHATEVER YOU HAVE THE CAPABILITY OF CONDENSING THE SIZE SO IT

19 CAN FIT ON A PAGE?

20 A. YES, SIR.

21 Q. SOUNDS LIKE THAT'S WHAT YOU DID, IS THAT RIGHT?

22 A. YES, SIR.

23 Q. CAN YOU TELL ME HOW MANY MEGS 8,000 PICTURES TOOK

24 UP?

25 I NEED TO BACK UP FOR A SECOND. I USED THE TERM

26 "MEGS." DO YOU UNDERSTAND THAT TERM?

27 A. YES, I DO.

28 Q. COULD YOU PLEASE TELL THE JURY WHAT DOES THAT MEAN?

6349

1 A. IT IS A SIZE -- FOR EXAMPLE, ONE TYPICAL FLOPPY

2 DISK THAT IN MOST COMPUTERS HAS ABOUT 1.4 MEGABYTES OF

3 INFORMATION, DEPENDING ON THE SIZE OF THE PICTURE, YOU COULD

4 HAVE AS MANY AS, YOU KNOW, ONE PICTURE OR YOU CAN HAVE MANY ON

5 THERE.

6 Q. WELL, ON THE, FOR INSTANCE, THE ZIP DRIVE, THOSE

7 ARE GENERALLY A HUNDRED MEGS, AREN'T THEY?

8 A. EITHER A HUNDRED OR I THINK THE ONES IN THIS CASE

9 WERE A HUNDRED, OR YOU CAN GET ONE WHERE THERE'S 250 MEGS.

10 Q. THE 250S ARE NEWER, IS THAT RIGHT?

11 A. YES, SIR.

12 Q. WITH REGARD TO C. D.S, THEY HAVE ABOUT SIX HUNDRED

13 MEGS, DON'T THEY?

14 A. ABOUT 650.

15 Q. AND IF THEY'RE A C. D.-R OR A C. D.-, RW DOES THAT

16 AFFECT THE STORAGE LAST SPACE?

17 A. NOT REALLY.

18 Q. WERE YOU ABLE TO DOWNLOAD THE EIGHT- -- I'M SORRY,  
19 WERE YOU ABLE TO TRANSFER THE 8,000 PHOTOS TO A C. D. OR DID YOU  
20 LEAVE THEM ON A HARD DRIVE?  
21 A. I BELIEVE I PUT THEM ON A C. D.  
22 Q. I'M SORRY, ARE YOU NOT SURE?  
23 A. NO. I SAID I BELIEVE I PUT THEM ON A C. D.  
24 Q. ALL RIGHT. AND DID YOU INDICATE ON THAT C. D. THE  
25 SOURCE OF THE COMPUTER THAT RESULTED IN A PHOTO YOU WERE  
26 TRANSFERRING?  
27 A. I BELIEVE I PUT THEM IN FOLDERS, EACH COMPUTER OR  
28 PIECE OF MEDIA HAD THE IMAGES IN EACH FOLDER.  
6350  
1 MR. FELDMAN: CAN I HAVE A MOMENT, PLEASE?  
2 (PAUSE)  
3  
4 BY MR. FELDMAN:  
5 Q. YOU SAID THAT THERE WAS -- SOME OF THE PICTURES YOU  
6 SAW YOU CALLED ANIME', IS THAT RIGHT?  
7 A. YES, SIR. YES, SIR.  
8 Q. I'M SORRY. PLEASE DON'T SHARE.  
9 A. OKAY.  
10 Q. ANIME' IS A PARTICULAR STYLE OF ART THAT'S  
11 AVAILABLE ON THE INTERNET THAT DEPICTS SEX BUT IN CARTOON KIND  
12 OF, ISN'T THAT RIGHT?  
13 A. YES, SIR.  
14 Q. AND JUST IN YOUR FORENSIC EXPERIENCE YOU'VE SEEN

15 LOTS OF ANIME', HAVEN'T YOU?

16 A. YES, SIR.

17 Q. BECAUSE IT'S COMMONLY DOWNLOADED BY MANY PEOPLE,

18 ISN'T THAT RIGHT?

19 A. YES, SIR.

20 Q. AND THE SITES ROUTINELY FEATURE WHAT APPEAR TO BE

21 ASIAN WOMEN, IS THAT RIGHT?

22 A. I WOULD SAY THAT'S CLOSE.

23 Q. AND USUALLY ENGAGING OR ENGAGED IN SOME FORM OF

24 SEXUAL CONDUCT?

25 A. YES, SIR.

26 Q. DO YOU EVER HEAR OF ANIME' DOT COM?

27 A. NOT -- I HAVEN'T VIEWED THAT SITE, NO, SIR.

28 Q. I THINK THE FIRST SERIES IS STILL PHOTOS I BELIEVE,

6351

1 BUT THIS IS MY MEMORY, WHICH I DON'T EVEN WANT TO GO THERE.

2 AND ONE OF THE SERIES OF STILL PHOTOS THAT WE SAW

3 WAS A SERIES OF ANIME' PHOTOS. IS THAT A FAIR WAY TO DESCRIBE

4 IT?

5 A. THERE WERE SEVERAL ANIME' PHOTOS, YES, SIR.

6 Q. WITH REGARD TO THOSE ANIME' SHOTS OR PHOTOS THAT WE

7 SAW CAN YOU TELL US FROM WHAT COMPUTER THEY SOURCED?

8 A. YOU MEAN, WHERE IT WOULD -- THE IMAGES THAT WE --

9 THAT WERE SHOWN WERE FROM THE LOOSE MEDIA FROM I BELIEVE IT WAS

10 ONE OF THE ZIP DISKS, AND YOU'RE ASKING WHAT COMPUTER IT CAME

11 FROM?

12 Q. CAN YOU TELL?

13 A. NO, I CANNOT.

14 Q. ALL RIGHT.

15 BUT YOU CAN TELL THE DATE OF LAST ACCESS BECAUSE

16 IT'S ON A ZIP, OR AT LEAST POTENTIALLY YOU MAY BE ABLE TO TELL

17 THE DATE OF LAST ACCESS BECAUSE IT'S ON A ZIP DISK, IS THAT

18 RIGHT?

19 A. YES, SIR.

20 Q. AND ALSO CAN YOU TELL BY LOOKING AT THE HARD DRIVE

21 OF ALL OF THE COMPUTERS WHETHER OR NOT THE FILE NAMES THAT

22 APPEAR ON THE EXHIBIT SOURCE FROM ANY OF THE OTHER COMPUTERS.

23 DO YOU UNDERSTAND OR SHOULD I TRY THAT AGAIN?

24 A. NO. I UNDERSTAND WHAT YOU'RE SAYING. IT WAS VERY

25 DIFFICULT -- WELL, YES, THERE WERE -- SEVERAL OF THE FILES CAME

26 FROM ALL -- LET'S SEE, I'M SORRY. CAN I HAVE CAN YOU ASK THE

27 QUESTION ONE MORE TIME?

28 Q. SURE. WHAT I'M TRYING TO FIGURE OUT IS WHETHER OR

6352

1 NOT -- WELL, LET'S TRY IT THIS WAY.

2 WITH REGARD TO THE PHOTOS THAT WE SAW, EACH OF

3 THOSE PHOTOS CAME FROM A COMPUTER FILE, RIGHT?

4 MR. CLARKE: OBJECTION, VAGUE AS FRAMED.

5 THE COURT: REPHRASE IT.

6 MR. FELDMAN: I'M TRYING TO BE UNVAGUE.

7 Q. WITH REGARD TO THE PHOTOS THAT YOU TESTIFIED TO

8 THAT WE HAD THE T.V. IN HERE, EACH OF THOSE PHOTOS WAS A DIGITAL

9 IMAGE, IS THAT RIGHT?

10 A. YES, SIR.

11 Q. WITH REGARD TO THE DIGITAL IMAGES, EACH DIGITAL

12 IMAGE HAS A FILE NAME, IS THAT CORRECT?

13 A. THAT IS CORRECT.

14 Q. YOU IDENTIFIED THE FILE NAMES AS THE EXHIBIT WAS

15 PUT TOGETHER; IS THAT CORRECT?

16 A. YES.

17 Q. THE FILE NAME IS A CONSTANT, IS IT NOT? IN OTHER

18 WORDS, IT STAYS FROM MEDIA TO MEDIA?

19 A. NO. THAT'S NOT ENTIRELY ACCURATE.

20 Q. PLEASE.

21 A. THE FILE NAMES IN THESE CASES, ALL THE FILES -- OR

22 MOST OF THE FILES, I'M SORRY, THE STILL IMAGES OR DIGITAL PHOTOS

23 HAD A NAMING CONVENTION OF IEA, AND THEN A SERIES OF NUMBERS.

24 ALL THE IMAGES, AGAIN, IT WAS A ONE TYPE OF CONVENTION ON HOW

25 THEY WERE NAMED. IT APPEARS TO ME FROM THE NUMBER OF CASES I

26 DID OR HAVE DONE AT THE LAB THAT THE FILES HAD BEEN RENAMED --

27 HAD BEEN RENAMED ONCE THEY GOT TO THE COMPUTERS IN QUESTION.

28 Q. DID YOU SEARCH USING ENCASE THE COMPUTERS TO

6353

1 DETERMINE WHETHER OR NOT THERE WAS ANY IEA FILES?

2 A. YES.

3 Q. DID YOU FIND ANY?

4 A. QUITE A FEW.

5 Q. DID YOU SEARCH THE COMPUTERS USING ENCASE TO

6 DETERMINE WHETHER OR NOT THERE WERE ANY IEA FILES THAT HAD BEEN

7 ERASED?

8 A. THERE WERE SEVERAL THAT HAD BEEN ERASED, YES, SIR.

9 Q. YOU USED THE WORD "SEVERAL." WHAT NUMBER DO YOU  
10 MEAN TO COMMUNICATE?

11 A. I DON'T KNOW THE NUMBER BUT I WILL GRANT YOU  
12 PROBABLY SEVERAL HUNDRED.

13 Q. ISN'T IT CORRECT THAT YOU WERE UNABLE TO LINK THE  
14 QUESTIONABLE IMAGES TO THE WESTERFIELD OFFICE COMPUTERS?

15 MR. CLARKE: OBJECTION, VAGUE.

16 THE COURT: SUSTAINED. REPHRASE IT.

17

18 BY MR. FELDMAN:

19 Q. SIR, WITH REGARD TO YOUR WORK ON THE CASE, YOU  
20 PREPARED A SERIES OF REPORTS; IS THAT CORRECT?

21 A. YES, SIR.

22 Q. YOU PREPARED THE REPORTS AT TIMES WHEN THE EVENTS  
23 WERE FRESHER IN YOUR MIND THAN THEY ARE TODAY?

24 A. YES.

25 Q. YOU REVIEWED THE REPORTS TO INSURE THAT THEY WERE  
26 ACCURATE; IS THAT CORRECT?

27 A. YES, SIR.

28 Q. YOU SPECIFICALLY INDICATED IN ONE OF THE REPORTS  
6354

1 THAT NO, YOU WERE UNABLE TO LINK THE QUESTIONABLE IMAGES TO THE  
2 WESTERFIELD OFFICE COMPUTERS. THOSE WERE YOUR WORDS; ISN'T THAT  
3 CORRECT?

4 A. YES, SIR.

5 MR. FELDMAN: I HAVE NO FURTHER QUESTIONS AT THIS TIME.

6 THE COURT: ALL RIGHT.

7 MR. CLARKE, ANY REDIRECT?

8 MR. FELDMAN: EXCUSE ME, I'M SORRY. I'M SORRY. I'M

9 SORRY.

10 (PAUSE)

11 MR. FELDMAN: NO FURTHER QUESTIONS. THANK YOU.

